

State vs Rajesh Kumar Sharma on 4 February, 2026

DLCT110002752022

IN THE COURT OF SH. VIDYA PRAKASH
SPECIAL JUDGE (PC ACT) (ACB) -01
ROUSE AVENUE COURT COMPLEX: NEW DELHI

CNR No.: DLCT11-000275-2022
CC No.: 30/2022
FIR No.: 46/2014
U/S: 7/13 PC Act
PS: ACB

In the matter of:

STATE

VERSUS

Rajesh Kumar Sharma
S/o: Sh. Krishan Chander Sharma
R/o: Flat No.67, Ground Floor
Pocket-A7, Sector-16, Rohini, Delhi

Date of Institution	:	13-05-2022
Date of reserving Judgment	:	24-01-2026
Date of Pronouncing Judgment :		04-02-2026

Appearances:-

For the State	:	Sh. Ravindra Kumar Ld. Chief PP for the State
For Accused	:	Sh. Amit Khanna, Advocate.

JUDGMENT

Sr. No.	Contents	Pages
1.	Brief Facts of the Case	2-8

Sr. No.	Contents	Pa
3.	Charge	1
4.	Prosecution Evidence	2
5.	Statement of Accused u/s 313 Cr.PC	3
6.	Arguments	3
7.	Analysis & Findings	9
8.	Conclusion	97
9.	Appendix-I	

10. Appendix - II	101
11. Appendix - III	109

1. The accused named hereinabove was facing trial in respect of offences punishable u/s 7 & 13(1)(d) r/w 13(2) of The Prevention of Corruption Act, 1988 (hereinafter called the PC Act).

BRIEF FACTS OF THE CASE

2. The brief facts of the prosecution case are as under:-

2.1 On 13.06.2014, FIR of present case was registered on the basis of Tehrir given by Inspector Satyender Dhull (PW10), of PS AC Branch, stating therein that an FIR No.25/14 dated 24.03.2014 under S. 7/13 PC Act, PS: ACB, GNCTD was registered on the complaint of Sh. Deepak Gupta, Chief Engineer, PWD Zone M3, GNCTD, against nine (9) officials of PWD, Electric Division, M-352. Said complaint of Sh. Deepak Gupta was based on one sting operation aired by India News channel on 22.03.2014 at 8:00 p.m. and its repeat telecast was aired on 23.03.2014 at 1:00 p.m., in which those officials were shown to be demanding/accepting the bribe. It further mentioned that during investigation, it was found that these stings were conducted at different points of time and at different places and the circumstances of each case were different and so, the legal opinion was sought from the Prosecution Branch as to how many FIRs are to be registered for further investigation, on which, it was opined by Prosecution Branch that separate FIRs be registered for each incident/sting operation for the purpose of further investigation.

It was further stated therein that raw footage of the sting operations, was already obtained and had been sent to FSL for examination. Accordingly, it was ordered by Addl.C.P, ACB, that separate case be registered under S. 7/13(1)(d) of PC Act, 1988 in respect of sting of Rajesh Kumar Sharma (accused herein), Asstt. Accounts Officer, EE (Electrical), M-352 at BSA Hospital and further investigation of the case be entrusted to Inspector Jarnail Singh.

2.2 It is further the case of prosecution that during investigation, Employee Data Summary of accused was obtained and copy of FSL Report bearing No. FSL 2014/P-2888/PHY-103/14 dated 23.12.2014 issued in FIR No.25/14, two sealed DVDs marked DVD-8 and Copy of DVD-8, and one unsealed DVD marked copy of DVD-8 of set-2, were taken on record. The said FSL report opined that 'video files in raw footage contained 28 identified video shots and these video shots were found connected by using software for capturing on screen display and there is no identification of alteration in the identified video shots on the basis of frame-by-frame examination.' 2.3 It is stated that transcription of aforesaid DVD was prepared and in that video, accused Rajesh Kumar Sharma was seen talking to sting video maker and it is clear from the conversation that some bills of sting video maker were pending with the accused and sting video maker was pleading with him to clear the same. At 3.00 minutes in the video, sting video maker asked accused as to whether he had to give something to accused [aapko maine kuch dena vena hai, kuch aur?] and in reply thereto, the

accused said after sometime that whatever is to be given, was upto his wish, and he (accused) was not required to say anything [dena duna aapki shradha pe hai. Kuch kehne ki baat nahi hai.].

2.4 It is further the case of prosecution that after about 8.12 minutes, the accused was seen putting something in his coat pocket regarding which, the complainant namely Sh. Sunil Kumar Chaudhary (PW2) claimed that accused was putting 1,500/- given by him, in his pocket. Copy of raw footage of DVD sting, which was marked DVD-RKS, was also seized. In the said sting video, the official seen was identified as accused Rajesh Kumar Sharma. Record of tenders awarded to M/s Hari Om Electronics during the year 2013-2014 was obtained, transcript of recording was verified by complainant namely Sh. Sunil Kumar Chaudhary and accused, Certificate under S. 65-B of the Indian Evidence Act was obtained from India TV, however, the original recording instrument used in the sting operation, was stated to have already been disposed off as it had a limited life and was un-repairable.

2.5 It is further the case of prosecution that the complainant namely Sh. Sunil Kumar Chaudhary was examined during investigation, who disclosed that sting was carried out by him on 28th February, 2014 and at the time of sting operation, reporter of India TV, namely Farooq Newazi (PW6) was also present outside the room in which sting video was made, and thus, statement of said journalist was also recorded, who corroborated the statement of the complainant. Thereafter, voice samples of accused and of the complainant were obtained after taking their consent and same were sent to FSL, Rohini for comparison with the voices contained in the sting video. The FSL Authority, vide its report dated 12.12.2018, had opined that the voice exhibits of Sh. Sunil Chaudhary are same as voice in sting video, however, with regard to voice of accused, it was opined that speaker identification test could not be made possible as his voice samples were having insufficient acoustic cues and other linguistic and phonetic features. In view thereof, the voice samples of accused were taken afresh, after taking his consent, and same were sent to FSL for examination.

After examination, the FSL Expert, vide his report dated 22.07.2020, opined that voice exhibits of accused Rajesh Kumar Sharma were same as voice in sting video. During investigation, the statements u/s 161 Cr.P.C of witnesses were also recorded.

2.6 It is further the case of prosecution that from the investigation conducted, it was revealed that complainant namely Sh. Sunil Kumar Chaudhary was running proprietary business in the name and style of M/s Hari Om Electronics and used to obtain contracts from PWD. He was continuously being harassed by various officials of PWD for release of bill amounts and illegal commission was being demanded and accepted by the officials of PWD. Feeling harassed by all this, the complainant had made sting videos of several officials of PWD, including that of accused Rajesh Kumar Sharma, who was working as Asstt. Account Officer (AAO) during the relevant period, with the help of journalist namely Sh. Farooq Newazi. It is further stated that the accused was working as AAO in the office of Executive Engineer (Electrical), M-352, and his duty was to check the bills received from Sub-Division offices and to put up before Executive Engineer for approval and also releasing the bill amount after approval of Executive Engineer. At the time of sting i.e. on 28.02.2014, first and final bill of complainant's firm in work agreement No.181/AE (E)/PWD/M-3523/2013-14 of Sub-Division M-3523 was pending in the office of Executive Engineer and the completion certificate of this work

was given by concerned JE (E) on 26.11.2013, but release of payment against said work was deliberately kept pending by the accused. The payment of 2,42,427/- was then released on 21.03.2014 through cheque only after the complainant Sh. Sunil Chaudhary/Contractor had given bribe of 1,500/- to accused Rajesh Kumar Sharma, AAO, who being a public servant, had obtained such bribe money of 1,500/- for himself from the complainant, for releasing the payment of bill submitted by him, which was otherwise official duty of accused and thus, he thereby committed the offences punishable under S. 7/13 PC Act.

2.7 Sanction under S. 19 PC Act for prosecution of accused was applied with, and accorded by the Competent Authority.

2.8 After completion of investigation, the accused was charge-sheeted [without arrest] for offences under S. 7/13 (1)(d) of PC Act.

COGNIZANCE

3. Cognizance of offences punishable under S. 7/13(1)(d) of PC Act was taken and consequently, the accused was summoned, vide order dated 14.07.2022, passed by Ld. Predecessor of this Court.

CHARGE

4. After hearing submissions made on behalf of both the sides, prima facie case for offences punishable u/s 7 & 13 (1) (d) of PC Act, punishable under S. 13(2) of PC Act was ordered to be made out against the accused, vide detailed order dated 04-11-2022, passed by Ld. Predecessor of this Court. Accordingly, separate charges for the said offences were framed against him, to which he pleaded not guilty and claimed trial.

5. It may be noted here that accused had challenged the aforesaid order by way of Crl. Rev. P. 434/2023 titled as 'Rajesh Kumar Sharma v. State (NCT of Delhi)' before Hon'ble Delhi High Court seeking, inter alia, setting aside/ quashing of the order on charge dated 04-11-2022. The said revision petition was partly allowed and disposed off, vide order dated 02-11-2023, passed by Hon'ble Delhi High Court. The relevant portion of the said order is extracted here as under:-

"xxxx

2. Learned counsel appearing on behalf of the petitioner submits that the present petition is being pressed only to the extent that the observation made by the learned Special Judge while passing the impugned order on charge dated 04.11.2022 in para 8, i.e., "Complainant has specifically stated in his statement that accused Rajesh Kumar Sharma used to demand 1.5% commission on all the pending bills and without accepting bribe, he was not processing his bills, therefore, he conducted the sting operation with Sh. Farooq Newazi and he had received bribe of Rs.1,500/- i.e. 15 notes of Rs.100/- denomination as commission/ bribe from him and this fact can be seen in the CD of sting operation at 8:12 minutes" is incorrect as the present

petitioner was not seen in the CD of the sting operation receiving alleged bribe of Rs.1,500/-.

3. Learned APP for the State fairly submits that the present petitioner is not seen in the CD receiving the bribe of Rs.1,500/-.

4. In view of the above, the aforesaid observation made by the learned Special Judge is hereby rectified to the extent that the present petitioner was not seen in the CD accepting the bribe of Rs.1,500/-.

5. In view thereof, the present petition is partly allowed and disposed of accordingly.

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PROSECUTION EVIDENCE

6. In order to prove its case, the prosecution has examined as many as thirty-five witnesses.

Material Witnesses

7. The prosecution has examined the following material witnesses:-

7.1 PW2 Sh. Sunil Kumar Chaudhary is the complainant. He proved transcription, running into 6 pages, as Ex.PW2/A, Seizure Memo of 2 cassettes containing his voice sample recorded by FSL, as Ex.PW2/B, Consent Memo for getting recorded his voice sample, as Ex.PW2/C, the place of occurrence identification memo as Ex.PW2/D, the original Measurement Book (M.B.) containing the relevant pages i.e. from page no.58 to 66 as Ex.PW2/E, attested copy of bill bearing No.181/AE (E) M-3523/2013-14 as Ex.PW2/F. He also identified 2 DVDs containing sting operation conducted by him as Ex.PW2/Article-1 and Ex.PW2/Article-2, cut cloth pullanda bearing his signature, as Ex.PW2/Article-3 and audio cassette containing his voice sample as Ex.PW2/Article-4 during trial.

7.2 PW3 Sh. Hari Shankar Roy, Ex. Executive Engineer, is the witness who identified the accused Rajesh Kumar Sharma, as AAO in the Electrical Division, after seeing the contents of video of DVD and proved observation-cum-identification memo dated 12.4.2019 prepared in this regard, as Ex.PW3/A. He also identified the said DVD as Ex.PW3/Article-1 during trial. He is also witness regarding procedure adopted for floating of tender, award of work and passing of bill and payment to contractor etc. and identified signatures on the measurement books and bills and proved the said measurement books as Ex.PW3/Article-2 (Colly.) during trial.

7.3 PW4 Sh. Deepak Gupta, Retd. Addl.

Director General, CPWD, Delhi is the witness who, through his letter dated 24.03.2014, had requested Addl. CP, ACB, Delhi to probe the role of 9 officials of PWD about whom telecast were made by India TV on 22.03.2014 and 23.03.2014. He proved copy thereof as Ex.PW4/A. 7.4 PW6 Sh. Farooq Newazi, is the journalist, India TV, who, alongwith the complainant, had conducted the sting operation of 9 officials of PWD. He identified the DVD [Ex.PW2/Article-1] containing video of sting operation during trial.

7.5 PW22 Dr. C. P. Singh, Assistant Director (Physics), FSL, Rohini, Delhi is the expert witness, who had conducted authorized judicial edit of raw video footage in DVD marked Exhibit-1 and had also split 12 relevant video footages identified by the sting team member and produced authorized edited video footages in DVDs Marked DVD1 to DVD9 and had also prepared 2 set of copy thereof. He proved photocopy of his detailed report as Ex.PW22/A, as original thereof is stated to be placed in case FIR No.25/2014, PS ACB.

7.6 PW24 Sh. Geetesh Patel, Assistant Chemical Examiner (Physics), FSL Rohini, Delhi is another expert witness, who had examined the voice samples of accused and complainant. He prepared his detailed reports, as Ex.PW24/A and Ex.PW24/B. Apart from identifying DVDs, he also identified envelope having FSL No. SFSLDLH/6115/PHY/208/19 as Ex.PW24/ Article-1 during trial.

7.7 PW31 Sh. Vijay Kumar Dev, the then Chief Secretary of Govt. of NCT of Delhi, is the witness who had accorded sanction under S. 19 of PC Act against accused for his prosecution under S. 7/13 of PC Act. He proved the said Sanction Order as Ex.PW31/A during trial.

Formal/Police Witnesses

8. The prosecution has examined the following formal/police witnesses:-

8.1 PW1 Retd. SI Krishna Kumar, was the then Duty Officer at PS ACB, who had recorded FIR in this case on the basis of rukka handed over to him by Inspector Satender Dhull. He proved carbon copy of said FIR, as Ex.PW1/A (Colly.) and his endorsement on the rukka, as Ex.PW1/B. He also proved DD Nos. 37 and 38, as Ex.PW1/C and Ex.PW1/D respectively, regarding handing over rukka to him for registration of FIR and investigation entrusted to Inspector Jarnail Singh, after registration of the FIR.

8.2 PW8 Retd. SI Ombir Singh, the then ASI in ACB, Civil Lines is the witness who got deposited three pullandas in FSL Rohini, vide RC No. 7/21/18 and had handed over acknowledgment thereof to concerned MHC (M). He proved copy of RC as Ex.PW8/A and said acknowledgment as Ex.PW8/B. 8.3 PW16 ASI Jitender Kumar is the witness, who had collected three sealed pullandas, one sealed envelop and one forwarding letter from the office of FSL and got deposited three sealed pullandas in the Mallkhana and had handed over the sealed envelope and forwarding letter to the IO.

He proved request letter for collection of FSL result, as Ex.PW16/A. 8.4 PW19 SI Suresh Kumar is the witness who, on the direction of IO, had collected FSL Result of case FIR No.46/2014, PS ACB, Govt. of NCT of Delhi and had deposited the same with MHC (M), PS Civil Lines, Delhi.

8.5 PW23 ASI Baljeet Singh, is the then MHC (M) at PS Civil Lines with whom case properties were deposited and he got deposited the same with FSL Rohini, on the direction of IO. He proved copy of entry no. 17/1087 in Register no.19 as Ex.PW23/A, the entry dated 21.06.2019 from Portion X to X regarding sending exhibits to FSL, copy of RC as Ex.PW23/B and acknowledgment of FSL as Ex.PW23/C. 8.6 PW26 HC Jitender, is the then MHC (M) at PS Civil Lines with whom case properties were deposited and he got deposited the same with the FSL Rohini, on the direction of IO. In addition to copies of acknowledgment and RC, he also proved copy of relevant entry in Register no.19, as Ex.PW26/A. 8.7 PW28 ASI Pawan, is the witness, who had recorded DD entries regarding arrival of panch witnesses in the office of ACB and also received Duty Rosters of panch witnesses from different departments. He proved DD Nos.8 and 19, both dated 16.01.2015, regarding arrival of panch witnesses namely Sh. A. K. Mittal and Sh. Rampal respectively, as Ex.PW28/A and Ex.PW28/B respectively; DD No.7 dated 09.08.2016 regarding arrival of panch witnesses namely Sh. Dinesh Boken, Sh. K. C. Meena and Sh. Jagbir, as Ex.PW28/C, DD No.8 dated 11.09.2017 regarding arrival of panch witnesses namely Sh. Dhanvinder Singh, Sh. Saraswati, Sh. Pramod and Sh. Manoj, as Ex.PW28/D; DD No.3 dated 26.09.2017 regarding arrival of panch witnesses namely Sh. Dinesh Kumar, Sh. Narender Kumar, Sh. Ankit Yadav as Ex.PW28/E, DD No.8 dated 26.09.2017 regarding arrival of panch witness namely Sh. Sahib Singh, as Ex.PW28/F; DD No.8 dated 22.12.2020 regarding arrival of panch witnesses namely Sh. Swapnil Patil and Sh. Vijay Kumar Meena as Ex.PW28/G, DD No.12 dated 22.12.2020 regarding arrival of panch witness namely Sh. Sandeep Kumar Tyagi as Ex.PW28/H; DD No.3 dated 16.06.2019 regarding arrival of panch witnesses namely Sh. Brahm Dutt Sharma, Sh. Mukesh Kumar, Sh. A. K. Jha and Sh. Shankar Bahadur, as Ex.PW28/I; DD No.9 dated 24.07.2018 regarding arrival of panch witnesses namely Sh. Manish Pandey, Sh. Deep Chand, Sh. Ashok Kumar and Sh. Narender Singh, as Ex.PW28/J, and DD No.5 dated 12.04.2019 regarding arrival of panch witnesses namely Sh. Rakesh Kumar Sharma, Sh. Rahul and Sh. Vinayak Patel, as Ex.PW28/K. He also proved copies of Duty Rosters of panch witnesses received from different departments namely Irrigation & Flood Control Department, Govt. of NCT of Delhi of January, 2025; Delhi Jal Board of September, 2017; Transport Department, Delhi of July, 2018; Trade & Taxes Department of June, 2019, Registrar Co-operative Societies, Govt. of NCT of Delhi of April, 2019; Drugs & Control Department, Govt. of NCT of Delhi, Karkardooma of August, 2016; Departmental of Social Welfare, Govt. of NCT of Delhi of December, 2017;

and Drugs & Control Department, Govt. of NCT of Delhi of December, 2017, as Mark PW28/X1, Mark PW28/X2, Mark PW28/X3, Mark PW28/X4, Mark PW28/X5, Mark PW28/X6, Mark PW28/X7 and Mark PW28/X8 respectively.

8.8 PW29 Sh. Ravinder, AE (Electrical) North Electrical Division, PWD, Rohini, Delhi is the witness, who has proved letter issued by Sh. Ashok Kumar Meena, the Executive Engineer (E), North Electrical Division, PWD, Dr. BSA Hospital, Rohini Delhi; the joining and the relieving order of accused. He proved the said letter as Ex.PW29/A, certified copies of joining letters dated

05.11.2012 and 20.11.2012, as Ex.PW29/B and Ex.PW29/C, and the relieving order dated 16.04.2015 as Ex.PW29/D. He also proved reply dated 04.08.2018 issued by Sh. Vinod Kumar Gupta, the Executive Engineer (E), North Electrical Division, PWD, Dr. BSA Hospital, Rohini Delhi, on receipt of notice under S. 91 Cr.PC, regarding status of submission of running/final bills, date of measurement, date of abstract and date of payments for the period 2012-2013 and 2013-2014 in respect of M/s Hari Om Electronics, proprietorship firm of the complainant, as Ex.PW29/E. He deposed that as per that letter, there was no record available regarding receiving of bills in the Division Office.

8.9 PW30 Sh. Manish, Senior Assistant, Trade & Taxes Department, ITO, Delhi is the witness who produced registration records of M/s Hari Om Electronics downloaded from DVAT portal and has proved attested copy thereof as Ex.PW30/A and Certificate under S. 65B of Indian Evidence Act, as Ex.PW30/B.

9. The prosecution has also examined the following witnesses who either joined the investigation or conducted the investigation:-

9.1 PW5 Sh. Ankit Yadav is the panch witness, who alongwith another panch witness namely Sh.

Manoj Kumar had joined the investigation and in whose presence, voice sample of complainant was taken/ recorded at FSL, Rohini in audio cassette and one copy thereof was prepared, which were seized by IO/Inspector Manoj Kumar. In addition to other documents, he has proved sample seal, as Ex.PW5/A, and Duty Roster showing his name at Sr. No. 26 for his duty on 26.09.2017 as panch witness at ACB, as Ex.PW5/B. Apart from identifying the said audio cassette [Ex.PW2/Article-4], he also identified cloth pullanda as Ex.PW5/Article-1 and audio cassette make Sony on which VOICE SAMPLE (copy) is mentioned, as Ex.PW5/Article-2 during trial.

9.2 PW7 Sh. Manoj Kumar, is also the panch witness, who alongwith aforesaid panch witness namely Sh. Ankit Yadav had joined the investigation and in whose presence, voice sample of complainant was taken/ recorded at FSL, Rohini in audio cassette and one copy thereof was prepared, which were seized by IO/Inspector Manoj Kumar.

9.3 PW9 Sh. Rahul, Junior Assistant, LNJP Hospital is also the panch witness in whose presence, the accused was identified in the footage of DVD, by PW3, and observation-cum-identification memo was prepared by IO in that regard.

9.4 PW10 Inspector Satender Dhull is the witness, who had conducted investigation in FIR No.25/2014 dated 24.03.2014 and had prepared rukka for registration of FIR of the present case, alongwith rukkas of other sting operations; giving background of the case and got the FIR registered. He is also witness who, after taking necessary permission from the Court, got the judicial edit of DVD Exhibit-1 containing the sting operation, so that the portion of sting in respect of each official may be separated for further investigation; and also got identified each official of PWD appearing in sting contained in DVD and seizure of DVDs by IO of the present case. He proved copy

of seizure memo of DVD Exhibit-1A as Ex.PW10/A, application seeking permission for authorized judicial edit of the said DVD as Ex.PW10/B, copy of observation-cum-judicial edit memo as Ex.PW10/C and identification memo as Ex.PW10/D, copy of rukka of the present case as Ex.PW10/E, handing over-cum-seizure memo of DVDs, Bio-Data of accused and copies of all other relevant documents, as Ex.PW10/F and seizure memo of copy of full DVD as Ex.PW10/G. In addition to other DVDs, he also identified the DVD, which was handed over to him by Sh. Rahul Khanna, as Ex.P3 during trial.

9.5 PW11 Sh. Dhanvinder Singh, working as Assistant Manager at DSCSE, Aapoorti Bhawan, Aaram Bagh, Delhi, is the panch witness, in whose presence, the complainant Sh. Sunil Kumar Chaudhary had signed the transcript of sting video recording during investigation.

9.6 PW12 Sh. Ajay Kumar Mittal is the panch witness, in whose presence, Inspector Satender Dhull had handed over two sealed parcels duly sealed with the seal of Dr. C.P. Singh FSL Delhi and one open DVD of Moserbaer bearing FSL number, employee data summary of accused and copy of FSL Report dated 23.12.2014 to IO/Inspector Jarnail Singh, who had accordingly seized the same. In addition to other documents, he has marked copy of employee data summary of accused, as Mark PW12/PX during trial.

9.7 PW13 Sh. Om Prakash, Senior Assistant, Department of Welfare, District Office, Rohini, Delhi is the panch witness, in whose presence, specimen voice sample of accused was taken/recorded in the audio cassette, at FSL Rohini, after taking consent of the accused. He proved said consent memo as Ex.PW13/A and seizure memo of said audio cassette as Ex.PW13/B. He also identified the said audio cassette as Ex.PW13/Article-1 during trial.

9.8 PW14 Sh. Kuldeep, Senior Assistant, Drugs Control Department, Karkardooma Court, Delhi is also the panch witness, in whose presence, specimen voice sample of accused was taken/recorded in the audio cassette, at FSL Rohini, after taking consent of the accused.

9.9 PW-15 Sh. Rahul Khanna, G.M./H.R. & Legal, India TV is the witness, who had provided raw footage of the sting operation telecasted on 22/23.03.2014 and some other details in respect of said sting operation to Inspector Satender Dhull and has proved copy of Notice under S.91 Cr.PC [original thereof is stated to be placed in case FIR No.25/14] as Ex.PW15/A, the letter dated 31.03.2014 written by him in response to the aforesaid Notice under S. 91 Cr.PC, as Ex.PW15/B, office copy of Notice for providing Certificate under S. 65B of Indian Evidence Act in respect of sting operation, as Mark PW15/X, his reply dated 18.01.2019 to the said Notice as Ex.PW15/C and Certificate under S. 65-B of Indian Evidence Act dated 18.01.2019, as Ex.PW15/D, Notice for providing whole episode carried out by reporter/ correspondent/ cameraman and the certificate for employment of the correspondent/ reporter, as Ex.PW15/E, reply thereto as Ex.PW15/F and Certificate in respect of employment of correspondent namely Sh. Farooq Newazi as Ex.PW15/G, Notice for providing original recording instrument alongwith connecting cables through which the sting operation was recorded in PWD office during the month of February, 2014, as Ex.PW15/H and reply thereto, as Ex.PW15/I. He has also identified the DVD [Ex.P3] containing the raw footage of sting operation carried out by correspondent Sh. Farooq Newazi, which was handed over by him to

Inspector Satender Dhull during trial.

9.10 PW17 Sh. Girij Pal, the then Constable, is the witness regarding recording of sample voice of accused at FSL Rohini, Delhi and seizure of two audio cassettes containing voice sample recordings of accused.

In addition to other documents, he also proved sample seal as Ex.PW17/A and has identified the said audio- cassettes containing sample voice recordings of accused during trial.

9.11 PW18 Sh. Chander Kant Sharma is the witness, in whose presence, voice sample of accused was taken in 2 audio cassettes [one was original and other was copy thereof]. He identified the cloth pullanda bearing mark 'RKS-1' as Ex.PW18/Article-1 and audio cassette, in which voice sample of accused was copied from the main sample voice cassette, as Ex.PW18/Article-2, cloth pullanda bearing mark 'RKS' as Ex.PW18/Article-3 and audio cassette, in which original voice sample of accused was recorded, as Ex.PW18/Article-4 during trial. On being cross-examined by Ld. Chief PP for the State, he also proved consent memo of accused as Ex.PW18/A and seizure memo of both the said audio cassettes containing voice sample of accused, as Ex.PW18/B. 9.12 PW20 ASI Pankaj Singh, the then Head Constable, is the witness of recording of voice sample of accused at FSL, Rohini, Delhi in audio cassettes [one original and one copy thereof] and seizure of said two audio cassettes.

9.13 PW21 Sh. Dinesh Boken is the panch witness, in whose presence, Inspector Satender Dhull had prepared copy of DVD with the help of office computer, and marked the same as DVD-RKS, and had handed over it to Inspector Manoj Kumar and seizure thereof.

9.14 PW25 HC Jasbir, the then Constable is the witness, in whose presence, voice sample of complainant Sh. Sunil Chaudhary was taken/ recorded in audio cassettes [one of the cassettes was original voice sample and the other was copy thereof] at FSL and seizure thereof.

9.15 PW27 Sh. Naveen Mann, LDC, o/o Executive Engineer, Jal Board, Pitampura, Delhi is the panch witness, in whose presence, consent of accused was taken for recording of his voice sample. He proved consent document as Ex.PW27/A. 9.16 PW32 ACP Jarnail Singh, the then Inspector is the first Investigating Officer (1st IO) of this case, who had conducted investigation of this case since after registration of the FIR;

and seized exhibits and FSL Result from Inspector Satender Dhull/IO of case FIR NO. 25/2014; and also served Notice u/s 41 Cr.PC upon accused, who joined the investigation and identified himself and his voice, as also the voice of the complainant.

9.17 PW33 Inspector Dinesh Kumar, is also the Investigating Officer, who had conducted the investigation from 14.10.2021 onwards; received the Sanction under S. 19 of PC Act and had filed the charge-sheet in the Court, after completion of the investigation.

9.18 PW34 Inspector Manoj Kumar, is also the Investigating Officer. In addition to various other documents, he has proved photocopy of sample seal memo as Mark PW34/X, Notice under S. 91 Cr.PC for providing of records regarding posting and attendance of accused, as Ex.PW34/A, Notice under S. 91 Cr.PC issued to Executive Engineer regarding the contract given to M/s Hari Om Electronics during the year 2012-2013 and 2013-2014, as Ex.PW34/B, Notice for providing details of running and final bills of M/s Hari Om Electronics dealt with by the accused as Ex.PW34/C, Notice under S. 91 Cr.PC for providing original measurement books, as Ex.PW34/D, replies dated 04.04.2019, 14.05.2019 and 29.05.2019 as Mark PW34/X1, Mark PW34/X2 and Mark PW34/X3 respectively, Notice under S. 91Cr.PC for providing Certificate under S. 65B of Indian Evidence Act from India TV regarding raw footage DVD, as Ex.PW34/E, Notice under S. 91 Cr.PC issued to concerned Authority of Department of Trade & Taxes, ITO Delhi for providing registration record of proprietorship firm of the complainant as Ex.PW34/F, reply dated 09.10.2019 thereto, as Ex.PW34/G, and registration record of M/s Hari Om Electronics, as Ex.PW34/H. In addition to other case properties/exhibits, he also identified cloth parcel no.2 bearing particulars of this case and FSL No.:

FSL-2018/P-186/Phy-07/18, as Ex.PW34/Article- 1, cloth pullanda duly sealed with the seal of MK, as Ex.PW34/Article-2, and one audio cassette make 'T-Series' bearing FIR number of the case, as Ex.PW34/Article-3 during trial.

9.19 PW35 Inspector Rakesh, is also part Investigating Officer, who had conducted investigation after 18.05.2015 only to the extent of issuance of Notice to the complainant for giving voice sample at FSL, Rohini, Delhi as date was already fixed.

10. On statement of Ld. Chief PP for the State that he wished to drop the prosecution witness mentioned at Sr. No.34 in the list of prosecution witnesses, since the documents pertaining to said witness, had already been exhibited and that all other material prosecution witnesses had been examined and he did not wish to examine any other witness, the said witness was dropped and PE was closed, vide order dated 29-10-2025, passed by this Court.

STATEMENT OF ACCUSED U/S 313 CR.PC

11. After conclusion of prosecution evidence, statement of accused was recorded under S. 313 Cr.PC, wherein he denied the correctness of all the incriminating circumstances appearing in evidence against him and stated that he was innocent and is falsely implicated in this case. The accused, however, admitted that complainant was working as contractor in CPWD from 2000 till 2014 and had done some contractual work in PWD, Delhi in the year 2013 and also that he was posted and working as Assistant Account Officer in PWD Office at Dr. BSA Hospital, Sector-6, Rohini, Delhi. While denying the incriminating evidence put to him, he stated that funds allocation was a matter of record and he had never accepted any money, nor clearance of bills was in his hand. He further stated that he would not know the pendency of bills of various contractors. On the asking of Sh. Sunil Kumar Chaudhary, he had checked the almirah, where bills and measurement books were kept, but did not find MB, so there was no question of his forwarding the bill. One bill was cleared

much later by the concerned department on 21st March, 2014 and the same was matter of record. He further stated that he learnt that audio-video was recorded by PW2, however, the same was doctored one. He further stated that FIR was wrongly registered against him without proper inquiry. He further stated that there is no record which can show that PW10 [Sh. Inspector Dhull] had made any endeavour to obtain equipment used in recording of sting operation and also that there is nothing on record to show that the instrument used in the sting, was sought and declined on some pretext by PW15 [Sh. Rahul Khanna] to PW10 [Inspector Satender Dhull]. The authenticity of the clips [videos files contained in DVD1 to DVD9] are doubtful. He further stated that he never met Sh. Farooq Newazi [PW-6] and so, he did not know on what basis the sting operation was got identified through him during trial.

12. Accused further stated that no CD was played before him and as such, there was no question of his identification or identification of voices. He further stated that transcript of sting operation contained in DVD, was incorrect. He further stated that transcript was also prepared during departmental enquiry initiated against him and there are discrepancies between the said transcripts. He admitted that he was called by PW34 [Inspector Pankaj Kumar] to give his voice sample and was asked to sign the documents, but no specific consent was taken from him before recording of his voice sample. In response to question that he was again called/ produced before FSL and his voice samples were taken, he stated that he had gone to FSL only once and neither his consent was sought, nor he met with any panch witness. He stated that he would not know the make of cassette/ CD/ DVD and markings on them.

13. Regarding FSL Result, the accused stated that FSL Report is faulty and no marking was done in his presence, nor he visited FSL again, therefore, he submitted that all the records are not genuine. He could not say as to how on one occasion, FSL gave non-conclusive result and then again gave conclusive result, and thus, claimed that the FSL report cannot be accepted or relied upon.

14. He further stated that he could not say about the procedure involved for preparation of the bills, however, the bills were sent to account branch for budgetary allocation and calculation purposes and hence, the duty of Account Branch was only to see correctness of bills i.e. calculation and availability of the budget. PW15 Sh. Rahul Khanna was not competent to give Certificate under S. 65B of Indian Evidence Act and such request of PW34 [Inspector Manoj Kumar] was legally untenable request. He also stated that he did not meet with any panch witness during the course of investigation in the present case. He, however, admitted that he was sole Incharge of the Account Branch.

15. Regarding Sanction under S. 19 of PC Act by PW31 Sh. Vijay Kumar Dev, the then Chief Secretary of Govt. of NCT of Delhi, he stated that PW31 did not examine the records of the present case and granted sanction without applying his mind and merely on the asking of ACB. He further stated that PW31 did not even peruse the video of sting operation of the present case and thus, the sanction was without application of mind and non-perusal of the record. He also stated that this is a false case made against him and witnesses are false and interested witnesses and thus, have deposed falsely against him. He further stated that he is innocent and PW2 Sh. Sunil Kumar Chaudhary has deposed against him because he had grievances against the department. He further submitted that

he had never demanded or accepted any money, and as a matter of fact, he only interacted with Sh. Sunil Kumar Chaudhary (PW2) once when he came to conduct sting operation on the premise of making enquiry about his bills. In fact, he used to face hostility from various contractors, as PWD often faced budget allocation constraints and delay in release of payments.

16. Although, the accused opted to lead DE, however, he ultimately did not examine any witness and closed DE, vide his statement recorded in the Court on 12.12.2025.

17. I have already heard Ld. Chief Public Prosecutor for the State and Ld. Counsel for the accused. I have duly considered the rival submissions made on behalf of both the sides in the light of the material available on record, as also the authorities cited at the Bar.

ARGUMENTS ADVANCED ON BEHALF OF BOTH THE SIDES

18. While referring to the case of prosecution as mentioned in the Charge-sheet; the testimonies of prosecution witnesses examined during trial; and the documents proved during trial, Ld. Chief PP for the State vehemently argued that both the material witnesses namely PW2 Sh. Sunil Chaudhary and PW6 Sh. Farooq Newazi have supported the case of prosecution regarding demand and acceptance of bribe by accused and since accused could not demolish their testimonies through litmus test of cross-examination, the prosecution has been successful in establishing the guilt of accused in respect of offences punishable under S.7 and 13(1)(d) read with S. 13(2) PC Act, beyond reasonable doubt.

19. Ld. Chief PP further argued that PW22 Dr. C.P. Singh and PW24 Sh. Geetesh Patel are FSL experts, and PW22 had conducted authorized judicial edit of video footage in DVD, where as, PW24 had examined voice samples of accused and complainant respectively, and they have duly corroborated the oral testimonies of PW2 and PW6 on all material points. While relying upon the FSL Results proved by them, Ld. Chief PP further argued that there is no iota of doubt that it was accused who is seen demanding and accepting bribe amount of 1,500/- from PW2. He further contended that said FSL Results clearly rules out possibility of any alteration in the video footage contained in said DVD.

20. He further argued that PW31 Sh. Vijay Kumar Dev, the then Chief Secretary of Govt. of NCT of Delhi, has proved Sanction Order under S. 19 of PC Act for prosecution of accused for the charged offences, as Ex.PW31/A. He also referred to the testimonies of relevant police witnesses, more particularly that of PW10 Sh. Satender Dhull, PW31 the then Inspector Jarnail Singh, and PW34 Inspector Manoj Kumar, who had carried out investigation in this case, in order to bring home his point that said witnesses have also supported the case of prosecution with regard to the material aspects of investigation carried out by them.

21. Apart from above, Ld. Chief PP also referred to and relied upon the testimonies of panch witnesses namely Sh. Ankit Yadav (PW5), Sh. Manoj Kumar (PW7), Sh. Rahul (PW9), Sh. Dhanvinder Singh (PW11), Sh. Ajay Kumar Mittal (PW12), Sh. Om Prakash (PW13), Sh. Kuldeep (PW14), Sh. Dinesh Boken (PW21), and Sh. Naveen Mann (PW27), while submitting that all these

panch witnesses have also corroborated the case of prosecution on all material points. He, therefore, contended that the prosecution has been successful in establishing the guilt of accused in respect of offences under S. 7 and 13(1)(d) read with S. 13(2) of PC Act, beyond reasonable doubt and thus, urged that the accused is liable to be convicted in this case.

22. Per contra, while refuting the aforesaid arguments advanced on behalf of State, Ld. Defence Counsel vehemently argued that the prosecution has failed to prove its case against accused beyond reasonable doubt. The main arguments advanced by Ld. Defence Counsel are summarized here as under:-

22.1 Testimony of PW2 Sh. Sunil Chaudhary is not reliable, inasmuch as he has made considerable improvements in his oral deposition recorded during trial vis-a-vis his previous statements made before IO during investigation;

22.2 PW2 has categorically admitted during his cross-examination that there was no demand of any bribe from the side of accused. Thus, in the absence of any evidence regarding demand of bribe, which is sine qua non for proving the offences charged against him, charges leveled against accused remained unproved;

22.3 PW2 admitted that GC notes in the denomination of 100/- each, are not seen in the DVDs (Ex.PW2/Article-1 & 2);

22.4 The testimony of PW6 Farooq Newazi is not trustworthy, inasmuch as he has admitted that he was not present at the time when alleged money transaction between accused and complainant namely Sh. Sunil Chaudhary had taken place; and the entire testimony of PW6 is, thus, based on hearsay;

22.5 PW6 has admitted during his cross-examination that exchange of GC notes between complainant and accused is not seen and also that the complainant (PW2) is not seen handing over anything to the accused in aforesaid DVD;

22.6 The authenticity and genuineness of DVDs (Ex.PW2/Articles-1 & 2) is highly doubtful, inasmuch as the prosecution has failed to produce original spy camera through which the alleged sting operation was conducted;

22.7 The authenticity of electronic data contained in DVD (Ex.PW2/Article-2) prepared by PW22 Dr. C. P. Singh, FSL Expert, is also highly doubtful since the original spy camera used in the alleged sting operation, was neither sent to FSL, nor examined by PW22;

22.8 The Sanction Order (Ex.PW31/A) is invalid inasmuch as the Sanctioning Authority has accorded such sanction without application of mind. In this regard, Ld. Defence Counsel had referred to and relied upon relevant portion of the testimony of PW31, whereby, he has admitted that he had not viewed the sting operation in

question.

23. On the basis of aforesaid arguments, Ld. Defence Counsel urged that since the prosecution has failed to establish the charges levelled against accused beyond reasonable doubt, the accused is entitled to be acquitted of all the charges framed against him.

24. In support of his aforesaid submissions, Ld. Defence Counsel also placed reliance upon the following judgments:-

24.1 'P. Somaraju v. State of Andhra Pradesh' bearing Criminal Appeal No. 1770 of 2014, decided on 28-10-2025;

24.2 'B. Jayaraj v. State of Andhra Pradesh', reported as (2014) 13 SCC 55;

24.3 'State of Punjab v. Madan Mohan Lal Verma', (2013) 14 SCC 15;

24.4 'Neeraj Dutta v. State (Govt. of NCT of Delhi)', reported as (2023) 4 SCC 731;

24.5 'C. M. Girish Babu v. CBI', reported as (2009) 3 SCC 779;

24.6 'CBI v. Ashok Kumar Aggarwal', bearing Criminal Appeal No. 1838 of 2013, decided on 22-11-2023; and 24.7 'Anvar P. V. v. P. K. Basheer & Ors.' reported as [2014] 11 S.C.R. 399.

ANALYSIS & FINDINGS

25. Before proceeding to examine the facts of the present case and to appreciate the evidence-oral as well as documentary, as has come on record during trial, in the light of above noted rival submissions made on behalf of both the sides, it would be apposite to discuss the legal position governing the points in issue.

26. It is trite law that in a case under Prevention of Corruption Act, 1988, the onus is on the prosecution to prove the foundational facts. Hon'ble Supreme Court in 'A. Subair v. State of Kerala' reported as [(2009) 6 SCC 587], while dwelling on the purport of the statutory prescription of Sections 7 and 13(1)(d) of the Act, has ruled that the prosecution has to prove the charge thereunder beyond reasonable doubt like any other criminal offence and that the accused should be considered to be innocent till it is established otherwise by proper proof of demand and acceptance of illegal gratification, which are vital ingredients necessary to be proved to record a conviction.

27. The Constitution Bench of Hon'ble Supreme Court in the cited case of Neeraj Dutta (supra), with regard to the nature and quality of proof necessary to sustain a conviction for offences under Section 7 or 13 (1) (d) (i) &

(ii) of the PC Act, has summarized the legal position as under:-

"68. (a) Proof of demand and acceptance of illegal gratification by a public servant as a fact in issue by the prosecution is a sine qua non in order to establish the guilt of the accused public servant under Sections 7 and 13 (1)(d) (i) and(ii) of the Act.

(b) In order to bring home the guilt of the accused, the prosecution has to first prove the demand of illegal gratification and the subsequent acceptance as a matter of fact. This fact in issue can be proved either by direct evidence, which can be in the nature of oral evidence or documentary evidence.

(c) Further, the fact in issue, namely, the proof of demand and acceptance of illegal gratification can also be proved by circumstantial evidence in the absence of direct oral and documentary evidence.

(d) In order to prove the fact in issue, namely, the demand and acceptance of illegal gratification by the public servant, the following aspects have to be borne in mind:

(i) if there is an offer to pay by the bribe giver without there being any demand from the public servant and the latter simply accepts the offer and receives the illegal gratification, it is a case of acceptance as per Section 7 of the Act. In such a case, there need not be a prior demand by the public servant.

(ii) On the other hand, if the public servant makes a demand and the bribe giver accepts the demand and tenders the demanded gratification, which in turn is received by the public servant, it is a case of obtainment. In the case of obtainment, the prior demand for illegal gratification emanates from the public servant. This is an offence under Section 13 (1)(d)(i) and (ii) of the Act.

(iii) In both cases of (i) and (ii) above, the offer by the bribe giver and the demand by the public servant respectively have to be proved by the prosecution as a fact in issue. In other words, mere acceptance or receipt of an illegal gratification without anything more would not make it an offence under Section 7 or Section 13 (1)(d), (i) and (ii) respectively of the Act. Therefore, under Section 7 of the Act, in order to bring home the offence, there must be an offer, which emanates from the bribe giver, which is accepted by the public servant, which would make it an offence. Similarly, a prior demand by the public servant when accepted by the bribe giver and in turn there is a payment made which is received by the public servant, would be an offence of obtainment under Section 13 (1)(d) and (i) and (ii) of the Act.

(e) The presumption of fact with regard to the demand and acceptance or obtainment of an illegal gratification may be made by a court of law by way of an inference only when the foundational facts have been proved by relevant oral and documentary evidence and not in the absence thereof. On the basis of the material on record, the Court has the discretion to raise a presumption of fact while considering whether the fact of demand has been proved by the prosecution or not. Of course, a presumption

of fact is subject to rebuttal by the accused and in the absence of rebuttal presumption stands.

(f) In the event the complainant turns 'hostile', or has died or is unavailable to let in his evidence during trial, demand of illegal gratification can be proved by letting in the evidence of any other witness who can again let in evidence, either orally or by documentary evidence or the prosecution can prove the case by circumstantial evidence. The trial does not abate nor does it result in an order of acquittal of the accused public servant.

(g) In so far as Section 7 of the Act is concerned, on the proof of the facts in issue, Section 20 mandates the court to raise a presumption that the illegal gratification was for the purpose of a motive or reward as mentioned in the said Section. The said presumption has to be raised by the court as a legal presumption or a presumption in law. Of course, the said presumption is also subject to rebuttal.

Section 20 does not apply to Section 13 (1) (d) (i) and (ii) of the Act.

(h) We clarify that the presumption in law under Section 20 of the Act is distinct from presumption of fact referred to above in point (e) as the former is a mandatory presumption while the latter is discretionary in nature."

28. Hon'ble Supreme Court in the case of 'State of Maharashtra Vs. Dnyaneshwar Laxman Rao Wankhede', Crl. Appeal No. 1350 of 2009, decided on 29.07.2009, has held that the foundational facts must be established by the prosecution. It was also observed that while invoking the presumption under Section 20 of PC Act, the Court is required to consider the explanation offered by the accused, if any, only on the touch stone of preponderance of probability and not on the touch stone of proof beyond all reasonable doubt. Hon'ble Supreme Court has made the following observations in this regard:-

"16. Indisputably, the demand of illegal gratification is a sine qua non for constitution of an offence under the provisions of the Act. For arriving at the conclusion as to whether all the ingredients of an offence, viz., demand, acceptance and recovery of the amount of illegal gratification have been satisfied or not, the court must take into consideration the facts and circumstances brought on the record in their entirety. For the said purpose, indisputably, the presumptive evidence, as is laid down in Section 20 of the Act, must also be taken into consideration but then in respect thereof, it is trite, the standard of burden of proof on the accused vis-à-vis the standard of burden of proof on the prosecution would differ. Before, however, the accused is called upon to explain as to how the amount in question was found in his possession, the foundational facts must be established by the prosecution. Even while invoking the provisions of Section 20 of the Act, the court is required to consider the explanation offered by the accused, if any, only on the touchstone of preponderance of probability and not on the touchstone of proof beyond all reasonable doubt."

29. As regards drawing of presumption, it has been held by Hon'ble Apex Court in 'Madhukar Bhaskarrao Joshi Vs. State of Maharashtra', (2000) 8 SCC 571 as under:-

"The premise to be established on the facts for drawing the presumption is that there was payment or acceptance of gratification. Once the said premise is established the inference to be drawn is that the said gratification was accepted "as motive or reward" for doing or forbearing to do any official act. So the word "gratification" need not be stretched to mean reward because reward is the outcome of the presumption, which the court has to draw on the factual premise that there was payment of gratification. This will again be fortified by looking at the collocation of two expressions adjacent to each other like "gratification of any valuable thing". If acceptance of any valuable thing can help to draw the presumption that it was accepted as motive or reward for doing or forbearing to do an official act, the word "gratification" must be treated in the context to mean any payment for giving satisfaction to the public servant who received it."

(Emphasis supplied).

30. The presumption under Section 20 of the PC Act is rebuttable either through cross-examination of the witnesses of prosecution, or by adducing reliable evidence as is held by Cochin Bench of Hon'ble High Court of Kerala in 'C. M. Girish Babu vs CBI', reported as (2009) 3 SCC 779.

31. In 'State of Punjab v. Madan Mohan Lal Verma', (2013) 14 SCC 15, Hon'ble Supreme Court has made the following observations as regards the burden of proof upon the prosecution and the accused in the light of presumption under Section 20 PC Act:-

"11. The law on the issue is well settled that demand of illegal gratification is sine qua non for constituting an offence under the 1988 Act. Mere recovery of tainted money is not sufficient to convict the accused when substantive evidence in the case is not reliable, unless there is evidence to prove payment of bribe or to show that the money was taken voluntarily as a bribe. Mere receipt of the amount by the accused is not sufficient to fasten guilt, in the absence of any evidence with regard to demand and acceptance of the amount as illegal gratification. Hence, the burden rests on the accused to displace the statutory presumption raised under Section 20 of the 1988 Act, by bringing on record evidence, either direct or circumstantial, to establish with reasonable probability, that the money was accepted by him, other than as a motive or reward as referred to in Section 7 of the 1988 Act. While invoking the provisions of Section 20 of the Act, the court is required to consider the explanation offered by the accused, if any, only on the touchstone of preponderance of probability and not on the touchstone of proof beyond all reasonable doubt. However, before the accused is called upon to explain how the amount in question was found in his possession, the foundational facts must be established by the prosecution. The complainant is an interested and partisan witness concerned with the success of the trap and his evidence must be tested in the same way as that of any other interested witness. In a

proper case, the court may look for independent corroboration before convicting the accused person. (Vide Ram Prakash Arora v. State of Punjab [(1972) 3 SCC 652: 1972 SCC (Cri) 696: AIR 1973 SC 498] ,T. Subramanian v. State of T.N. [(2006) 1 SCC 401: (2006) 1 SCC (Cri) 401] , State of Kerala v. C.P. Rao [(2011) 6 SCC 450 : (2011) 2 SCC (Cri) 1010 :

(2011) 2 SCC (L&S) 714] and Mukut Bihari v. State of Rajasthan [(2012) 11 SCC 642 : (2013) 1 SCC (Cri)1089 : (2013) 1 SCC (L&S) 136])"

(emphasis supplied).

32. Now, coming back to the facts of the present case.

Needless to say that facts of the present case need to be examined on the touchstone of the legal principles laid down in the above-referred decisions.

33. The accused has been charged with offences under S. 7 & 13(1)(d) read with S. 13(2) of PC Act. As is quite evident from above discussion that the prosecution has relied upon two sets of evidence in order to bring home the guilt of accused for the offences charged against him. The first set of evidence consists of oral testimonies of witnesses examined during trial; and the second set of evidence consists of electronic evidence in the form of DVDs (Ex.PW2/Article-1 & 2, and Ex. P3), which according to the case of prosecution, contained alleged sting operation of accused purportedly conducted by PW2 and PW6. Hence, the Court is required to examine and ascertain as to whether or not the prosecution has been able to bring home the guilt of accused in respect of offences charged against him, beyond reasonable doubt, by way of either of said two sets of evidence or even by both the said sets of evidence.

Oral Evidence

34. As already noted above, the FIR in question came to be registered on the basis of written complaint of Sh. Deepak Gupta, the then Chief Engineer, PWD Zone M3, GNCTD, which was premised on one sting operation aired by India News Channel on 22.03.2014 at 8:00 p.m. and its repeat telecast aired on 23.03.2014 at 1:00 p.m., in which 9 officials were allegedly shown to be demanding/accepting the bribe. The said alleged sting operation, as per the case of prosecution, was conducted by PW2 Sh. Sunil Kumar Chaudhary, and PW6 Sh. Farooq Newazi, who was working as Principal Correspondent in India TV News Channel. Therefore, both of them were star witnesses of prosecution for proving the alleged demand and acceptance of bribe by the accused. Thus, the testimonies of both these witnesses need to be examined first in order to ascertain as to whether or not the prosecution has been able to establish beyond reasonable doubt that there was demand and acceptance of bribe by the accused.

35. As regards the testimony of PW6 Sh. Farooq Newazi, it may be noted that he has supported the prosecution case only to the extent, whereby it was alleged that the complainant Sh. Sunil Chaudhary (PW2) had visited the office of India TV News Channel in the year 2014, and also that in

the last week of February, 2014, he had accompanied PW2 to the office of accused situated at Ambedkar Hospital, Rohini, Delhi. However, his remaining testimony is found to be based on hearsay evidence, for the reason that there is candid admission on his part during chief examination itself that he never accompanied the complainant inside the room of accused, and the alleged incident regarding demand and acceptance of bribe between complainant and accused did not take place in his presence. He simply deposed that after coming out of the room of accused, the complainant had told him as to what had transpired between him and the accused and thereafter, he took spy cam from the complainant and checked the recording/visual after going to his office. He deposed not to have seen the accused, to be the same person with whom alleged money transaction took place on the alleged date of 28.02.2014. During his cross-examination, he reiterated that when he alongwith complainant had reached outside the room of accused, the complainant had asked him to stay outside the room of accused. He also testified that on the day of sting operation, the gate of the room of accused was closed. On the asking of complainant, he remained outside the room of accused on the day of sting operation. Not only this, he also admitted that he had no personal knowledge as to what had happened in the room of accused on the day of sting, since he was standing outside the room. The relevant portion of his cross-examination, in this regard, is extracted here as under:-

xxxx In these 9 cases only in case of accused, I had not met with accused at the time of sting operation. xxxx on the day of sting, the gate of the room was closed while one day prior it was lying open.

xxxx I have no personal knowledge what happened in the room of accused on the day of sting as I was standing outside the room. I perceived that accused had received some money as there was movement of his hand towards his pocket. I gave all my statements on the basis of what I was informed by the complainant and what I perceived from the footage shown to me.

xxxx

36. In view of above reproduced portions of cross-examination of PW6, this Court finds considerable force in the argument advanced on behalf of accused that the testimony of PW6 is based upon hearsay, inasmuch as it is duly established that no such alleged money transaction took place either in the presence of, or within the hearing of this witness. At this juncture, it would be apposite to refer to Section 60 of the Evidence Act, which clearly provides that oral evidence in all cases must be direct. The said provision leaves no ambiguity and clearly mandates that no secondary/hearsay evidence can be given in case of oral evidence, except for the circumstances enumerated therein. In case of a person who asserts to have heard a fact, only his evidence must be given in respect of the same. Hence, it would not be safe to rely upon the testimony of this witness, it being trite law that hearsay evidence is inadmissible in the eyes of law. Still, if any authority is required, then, reference with advantage can be made to the decision of Hon'ble Apex Court in the case of 'Babu Sahebagouda Rudragoudar & Ors. v. State of Karnataka' reported as 2024 (8) SCC 149.

37. Moreover, PW6 is found to have made material improvement in his deposition made during trial vis-a-vis his statement recorded during investigation. He has testified during his cross-examination that after talking with some staff member of accused on the day of alleged sting operation, the complainant had asked him to stay outside the room of accused. Though, he deposed to have stated such facts to the IO in his statement recorded during investigation, however, when he was confronted with his previous statement under S. 161 Cr.PC (Mark PW6/DA), such facts were not found so recorded. Rather, PW6 admitted during his further cross-examination that he had stated in his said statement under S. 161 Cr.PC (Mark PW6/DA), that he did not accompany complainant inside the room of accused as he would not have talked openly in his presence. Thus, the said witness is shown to have given two different versions for not accompanying the complainant inside the room of accused at the time of alleged sting operation, which would make his testimony un-credible and untrustworthy.

38. Further, the testimony of PW6 to the extent whereby he testified that one day prior to the alleged sting, he alongwith complainant had gone to the office of accused and he had seen accused outside the gate of his room when the complainant was talking with him, is also found to be untrustworthy, for the reason that he is found to have made improvement in that regard in his deposition made during trial, vis-a-vis his statement under S. 161 Cr.PC [Mark PW6/DA], wherein, he nowhere stated before IO that he had accompanied complainant Sh. Sunil Kumar Chaudhary to the office of accused on 27.02.2014, or that he had any occasion to see the accused on that day. In this backdrop, it would be anybody's guess as to how the said witness was in a position to identify the accused during trial, as has been done. Hence, this Court finds substance in the argument advanced by Ld. Defence Counsel that no weightage can be attached to the factum of identification of accused by this witness during trial and thus, it cannot be construed as an incriminating evidence against the accused. In any case, this witness has nowhere testified during trial that there was any demand of illegal gratification by accused even on 27.02.2014. This is quite apparent from relevant part of his deposition that even on that day (27.02.2014), he had not heard any conversation between complainant and accused.

39. Further, PW6 although claimed that after coming outside the room of accused on the previous day i.e. 27.02.2014, complainant had told him that it would not be done today and they would have to come tomorrow, however, he has nowhere deposed about any reason, as would have been told to him by the complainant, for which it would not have been possible to conduct the sting on that day (27.02.2014) and as to why, they would have to come again on the next day i.e. 28.02.2014. Moreover, said portion of the testimony of PW6 regarding narration of aforesaid facts which allegedly took place one day prior to the date of alleged sting operation, is found to be missing in his previous statement under S. 161 Cr.PC (Mark PW6/DA). Same would also demonstrate that he has made considerable improvement in his testimony recorded during trial. For all these reasons, this Court is of the considered view that the testimony of PW6 is not at all reliable or trustworthy.

40. Now, I shall come to the testimony of PW2 Sh. Sunil Chaudhary, who is complainant of this case. No doubt, he has supported the case of prosecution to the extent that he was working as Contractor in CPWD and had done some contractual work in PWD, Delhi and had visited the office of India TV News Channel and had apprised all the facts regarding the prevailing corruption in PWD

to the officers of India TV News Channel and also that it was decided that he alongwith journalist namely Sh. Farooq Newazi of said news channel, would conduct sting operation and same would be aired on TV.

He has also deposed on the lines of prosecution story to the effect that accused was working as Assistant Account Officer in PWD Office at Ambedkar Hospital, Sector-6, Rohini, Delhi at that time and he used to see whether there was funds available regarding the work done by Contractors and in case of availability of such fund, then, he used to send the bill after passing it, for payment.

41. PW2 deposed that his 3-4 bills were pending in the Accounts Section of PWD, where accused was posted in February, 2014, and on 27th or 28th February, he alongwith Sh. Farooq Newazi had gone to the office of accused, where accused asked him about the identity of Sh. Farooq Newazi and when he told accused that Sh. Farooq Newazi was his Assistant, the accused asked him to send Sh. Farooq Newazi outside his room. Thereafter, both of them came outside the room of accused and then, said Sh. Farooq Newazi fixed spy cam in the button of his wearing shirt for recording the conversation and in the afternoon, he again went inside the room of accused and requested him to clear his 3-4 pending bills of 5-7 Lacs. The accused told him that fund was not available, on which, he requested the accused to clear at least one bill and as informed by the juniors of accused that he will not clear the bill without accepting the bribe, he handed over 1,000/- - 1,500/- to the accused and requested him to clear the bill. He further deposed that on being told that his pending bills were lying with accused, the accused checked up from his almirah and after taking one bill from there, he passed the said bill, where-after, he came outside the room of accused and the entire conversation i.e. audio-video, which was recorded in spy cam, was handed over by him to the journalist namely Farooq Newazi. Later on, said sting was aired on India TV News Channel on 22/23 March, 2014. Thus, PW2 is found to have made deviation from the prosecution story by testifying that he was informed by junior officers of accused to give some amount to the accused for clearance of pending bills.

42. PW2 further deposed that in the month of March, 2017, he had received a notice from ACB to join the investigation and accordingly, he visited the office of ACB, where he met with Inspector Manoj Kumar and the sting was played in the office computer of ACB, where, he had identified the sting related to accused. In the month of September, 2017, he had again visited the office of ACB and joined investigation of this case. At that time, sting operation related to accused was again played by Inspector Manoj Kumar and after seeing and listening the same, he had identified the accused and the conversation, which had taken place between them in the said sting operation, where-after, transcription [Ex.PW2/A] was got prepared and after reading the contents thereof and finding them to be correct, he had signed on each page thereof.

43. PW2 further deposed that somewhere in the year 2018, he had again joined investigation of this case and had accompanied IO alongwith 1-2 panch witnesses to FSL Rohini, Delhi where his voice sample was recorded after he gave his consent for the same. The FSL Expert had prepared two audio cassettes of his voice sample, which were separately marked as 1-2, besides some other identification codes. Thereafter, both the said cassettes were seized by IO, vide memo Ex.PW2/B. He further deposed that later on, he had again visited the office of ACB where, IO had shown him one MB Book

No.644, on which, he had identified the signatures of Sh. R. D. Vashisth, the then JE and Sh. Fakeer Chand Tyagi, the then AE.

44. He also identified the aforesaid DVDs as Ex.PW2/Article1 and Ex.PW2/Article2 during trial to be the same DVDs, which contained sting operation conducted by him. Besides that, he also identified audio cassette make Sony, (Ex.PW2/Article-3) to be same audio cassette, in which his voice sample was taken by FSL Expert.

45. It may be noted here that Ld. Chief PP for the State sought and was permitted to put leading questions to this witness, by Ld. Predecessor of this Court. During said examination, PW2 admitted that accused used to demand 1.5% commission on the bills raised by him and he had given 1500/- as bribe money to the accused, which were in the denomination of 100/- each. He also admitted that two audio cassettes of his voice sample were prepared, which were given mark SCVS and SCVS-1, and both the said cassettes were sealed with the seal of MK and one separate sample seal on plain paper was also prepared by the IO.

46. During his cross-examination, he deposed that the sting of PWD officials were conducted by him alongwith journalist Sh. Farooq Newazi on different dates. He had, perhaps, conducted 2-3 sting operations of other PWD officials prior to the sting of accused and it took about 2-3 months in conducting such sting operations.

47. He further deposed that after conducting one particular sting, he used to hand over the recording device to Farooq Newazi and 2 recording devices were used for conducting 9 stings and he was explained about the functioning of recording device and how to record the sting, by Sh. Farooq Newazi. In some of the sting operations, Farooq Newazi had accompanied him and had put the recording device on the button of his wearing shirt and in one of the stings, they both were having recording devices with them. However, he could not tell the name(s) of the official(s) in whose sting, both of them were having recording devices with them. In any case, there cannot be any question of Farooq Newazi carrying any recording device in the case of sting operation in question, in view of his above discussed testimony recorded during trial that he did not witness the alleged money transaction on 28.02.2014.

48. Though, PW2 deposed that he had stated in his statement made before IO that he alongwith Farooq Newazi had gone inside the room of accused and when the accused asked from him about the identity of Sh. Farooq Newazi, he having told the accused that Sh. Farooq Newazi was his Assistant, on which, accused asking him to send Sh. Farooq Newazi outside his room, however, when he was confronted with his statement under S. 161 Cr.PC (Mark PW2/DA), such facts were not found so recorded. Rather, it was mentioned therein that Sh. Farooq Newazi did not accompany PW2 inside the room of accused. This would clearly show that PW2 has made material improvement in his testimony recorded during trial vis-à-vis his statement recorded during investigation.

49. Be that as it may, despite being called upon to disclose their names during his cross-examination, PW2 could not disclose the names of junior officers of accused who had allegedly told him that without paying bribe of 1.5% commission to the accused, his bills would not be cleared

by him. Though, PW2 claimed that one such junior official was working as Cashier at that time, however, he feigned ignorance if he had stated this fact before IO. Anyhow, when PW2 was confronted with his statement under S. 161 Cr.PC (Mark PW2/DA), no such fact was found mentioned either with regard to Cashier, or regarding any junior officer of the accused. Pertinently, the complainant Sh. Sunil Kumar Chaudhary (PW2) deposed to have joined investigation on four occasions. As per charge-sheet and the documents filed therewith, IO is claimed to have recorded his statement under S. 161 Cr.PC on five different occasions i.e. on 07-03-2017, 11-09-2017, 26-09-2017, 24-07-2018 and 09-08-2019. However, neither in his statement dated 07-03-2017 (Mark PW2/DA), nor in his other four subsequent supplementary statements, the complainant is found to have stated before the IO that he was told by junior officers of accused that without paying bribe of 1.5% commission, his bills would not be cleared by accused. It is only for the first time that he has come up with such facts in his testimony recorded during trial. Hence, this Court is in agreement with argument advanced on behalf of accused that the complainant namely Sh. Sunil Kumar Chaudhary (PW2) had made considerable improvements in his testimony recorded during trial vis-a-vis his previous statements recorded during investigation and thus, the aforesaid portion of the testimony of PW2, is clearly an after-thought and hence, cannot be believed.

50. There is another facet involved in this matter.

Had it been the situation where junior officer of accused like Cashier, would have told the complainant that without paying bribe of 1.5% commission, his bills would not be cleared by accused, then, the complainant ought to have stated about such fact before IO during investigation. This is more so when as per the case of prosecution, statements of complainant were recorded on five different occasions by IO during investigation. The reason being that had it been so done, it would have been possible for the Investigating Agency to examine so called Cashier/junior(s) during investigation in order to find out correctness or otherwise of the said allegation from him/her, and also to cite him/her as a witness and to examine him/her during trial. Having not so done, the story as propounded by complainant i.e. PW2 for the first time during trial, of having been told by junior officers of accused to pay 1.5 % commission as a bribe to accused for clearance of bills, falls flat on to the ground and for this reason, same is liable to be brushed aside.

51. Be that as it may, PW2 has categorically admitted during his cross-examination that accused did not demand money from him in the present case. The relevant portion of his cross-examination is extracted here as under:-

"xxxx It is correct that accused did not demand money from me in this case.

.... After seeing the footage of the sting operation witness submits that GC notes of Rs.100/- denomination are not seen in the footage (Vol. I had given Rs.1,500/- to accused and he kept the same in his pocket and same is seen in the video clip) "

52. Thus, it is quite evident from above that there is not only categorical admission on the part of complainant (PW2) that there was no demand of bribe from the side of accused, but also that GC notes in the denomination of 100/- each, are not seen in the footage. His volunteered statement

that accused keeping 1,500/- in his pocket, is seen in the video clip, is not only factually incorrect, but is also found to be contrary to record.

53. There are observations made by Hon'ble Delhi High Court in the order dated 02-11-2023 (supra), as already reproduced hereinabove, that contention was raised on behalf of petitioner/accused that accused herein is not seen in the CD of sting operation receiving alleged bribe of 1,500/-, which submission was not disputed by Ld. APP, who had appeared on behalf of State before Hon'ble Delhi High Court. Apart from that, there is an admission on the part of PW6 Sh. Farooq Newazi during his cross-examination that in the video clip of present sting, he could not see GC notes in the hands of the complainant (PW2), or in the hands of the accused, and also that he could not see them exchanging GC notes and also that complainant is not seen while handing over anything to the accused. Not only this, PW34 Inspector Manoj Kumar, who is main IO of this case, has also admitted that no currency note is visible in the sting operation conducted qua the present accused. The relevant portion of his cross-examination in this regard, is reproduced here as under:-

"xxxx Question. I put it to you that no currency note is visible on the sting operation conducted qua accused Rajesh Kumar Sharma in the present case. What do you have to say? Answer. No currency note is specifically visible therein, however, accused Rajesh Kumar Sharma is seen putting something in the pocket of his wearing coat. Question. I put it to you that there was no currency note visible in the hand of Mr. Sunil Chaudhary on the sting operation conducted qua accused Rajesh Kumar Sharma in the present case.

What do you have to say?

Answer. Yes. No currency note was visible in the hand of Mr. Sunil Chaudhary.

xxxx During investigation, Mr. Sunil Chaudhary had told me that he had to pay bribe to some of the officials of PWD in the past. Neither I asked the names of those officials of PWD from him, nor he disclosed their names to me (Vol. He had told me that he had to pay bribe to Mr. Rajesh Kumar Sharma/accused herein in the past under compulsion). I had mentioned these facts in the statement u/s 161 Cr.P.C. of Mr. Sunil Chaudhary recorded during investigation. Confronted with all the five statements u/s 161 Cr.P.C. dated 07.03.2017, 11.09.2017, 26.09.2017, 24.07.2018 and 09.08.2019. After going through the same, the witness states that the factum of paying bribe to accused Rajesh Kumar Sharma in the past, is nowhere mentioned in either of the said statements. Since there was no concrete evidence available regarding payment of bribe by Mr. Sunil Chaudhary, I did not take any action against him for payment of bribe.

xxxx"

54. In view of above, the relevant portion of the testimony of PW2 that accused is seen keeping 1,500/- in his pocket in the video clip of said CD, does not inspire confidence of the Court.

55. Further, during cross-examination of PW2, DVD (Ex.PW2/DA) containing raw footage of complete PWD sting having duration of 4 hours 22 minutes 02 seconds, was played and different video clips of other PWD officials against whom sting was allegedly conducted, were shown to him, and after seeing those clips, PW2 admitted that audio quality of DVD in those other sting operations, was so clear that sound of counting of GC notes was also clearly audible. He also admitted that in those other sting operations, he did not hide the bribe money, and on the contrary, he had demonstrated the exchange of bribe money from him to the Receiver, and also that he had offered bribe money by informing the Receiver about bribe money on many occasions. PW2 has also deposed that 2 cases of cheque bounce were pending against him and he is also an accused in one of the cases registered against government official by CBI under PC Act. Thus, it is not a case where this witness was not conversant with the rules and procedures of law.

56. In the backdrop of aforesaid facts and circumstances, it is not explained by the complainant (PW2) as to why he did not conduct the sting in question in similar manner, as had been allegedly done by him qua other PWD officials, which would have demonstrated exchange of bribe money between him and the accused; as also the bribe money; and also the denomination of GC notes, which were allegedly paid by him as bribe money to the accused. Such conduct on the part of PW2 would, thus, be perceived as quite unnatural, since 2-3 sting operations had already been conducted by him with respect to other PWD officials, prior to conducting the alleged sting operation of the present accused and there being an admission on the part of PW2 that he had already been explained about the functioning of the recording device and the manner in which sting was to be recorded, by Sh. Farooq Newazi (PW6).

57. Be that as it may, even if it be presumed for the sake of convenience that the accused had received money from the complainant, still, said fact in itself would not be sufficient to establish the charge in respect of offence punishable under S. 7 of PC Act. It is no more *res integra* that mere receipt of amount by accused is not sufficient to fasten the guilt and demand of illegal gratification is *sine qua non*. It is also well settled law that the complainant is an interested witness, who would always be interested in success of the trap/sting and thus, his evidence must be tested in the same way as that of any other interested witness and also that in appropriate case, the Court may look for independent corroboration before convicting the accused. While saying so, this Court is fortified by the cited cases of *Mukut Bihari & Anr.* (supra) and *Madan Mohan Lal Verma* (supra).

58. In view of the aforesaid discussion and for the reasons noted hereinbefore, this Court is of the considered view that possibility of complainant having concocted the aforesaid facts at a later stage, as were testified by him for the first time during trial, in order to support the allegations regarding demand and acceptance of bribe levelled against accused, cannot be ruled out.

59. Further, it may also be noted that PW2 has feigned ignorance of the fact that job of 'Account Officer' was to see that the bill is complete in all aspects and there is availability of funds and then, to forward the same for further action/process, however, at the same time, he admitted that it was for the Executive Engineer to decide with regard to the pending bills and Mr. H. S. Roy was the Executive Engineer at that point of time. Though, he claimed that when the final invoice reaches the Account Office, it is complete in all respects i.e. bill, agreement and measurement book, however, he

denied the suggestion that accused was not having measurement book alongwith invoices/bills. He deposed that it might be that the measurement book was not with the accused at that time when he had recorded the sting, but same was with him earlier when the invoices/ bills were submitted to the auditor.

60. PW3 Sh. Hari Shankar Roy, who was admittedly working as Executive Engineer during the relevant period in the concerned Division of PWD, has testified that once the Contractor has carried out the work, inspection of the work done was to be conducted by JE, AE and Executive Engineer. After carrying out the measurement of work done and after due checking thereof, the Measurement Book is filled up by JE, who then submits it to concerned AE and after inspection, AE approves the same, where-after, the bill is prepared by Sub Divisional Clerk as per the Measurement Book and after preparation of bill, same is sent to the office of Executive Engineer, where bill is checked by Account Branch and then, same is forwarded to Executive Engineer for final approval. He further deposed that before approving the final bill, the Executive Engineer also visits the site, where the work is done by the Contractor. He further deposed that when the bill is examined and processed in the Account Branch by the clerks or auditors, same is finally seen by the AAO and then, same is put up before Executive Engineer for approval.

61. During his cross-examination, he testified that the entries in the Measurement Book are made by JE at the site and the Account Office does not make such entries in the Measurement Book. He also deposed that the role of Account Office is to check whether the bill sent by the office of AE, is in order or not, and is in accordance with the contract or work order; and thereafter, the Account Office put up the bill before Executive Engineer for approval and processing of payment. He admitted that no bill can be cleared unless approved by the office of Executive Engineer and Account Office is not the final Authority for making/ release of payment.

62. Thus, it is quite evident from the ocular testimonies of PW2 Sh. Sunil Kumar Chaudhary and PW3 Sh. Hari Shankar Roy that as per procedure which was being followed in respect of process of bill submitted by any Contractor and release of payment thereof, such bill used to reach the office of Account Branch only after the relevant entries are already done in the Measurement Book, on inspection of site by JE and same is thereafter checked, verified and approved by concerned AE after carrying out inspection of the site, and Account Branch had limited role to the extent of verifying such bill in order to ascertain whether same is in accordance with contract/work order or not; and in case, such bill is found to be in conformity thereof, AAO was merely required to make his endorsement in the bill and Measurement Book(s). It is also duly established from the testimony of PW3 that he, being the Executive Engineer, was the Final Authority to grant approval for release of payment against such bill. It is relevant to note that PW3 has nowhere deposed that Accounts Branch was required or duty bound to furnish report/opinion regarding availability of funds under the particular head. Pertinently, PW3 was cross-examined by Ld. Chief PP for State on two occasions i.e. 19.12.2022 and 13.09.2023, however, no such question or even suggestion in this regard, was put to him on behalf of State. That being so, the relevant portion of deposition of PW2 that accused had passed one of his pending bills, or that the accused, being AAO, was empowered to furnish report regarding availability of funds under particular head, could not be substantiated either through the ocular testimony of PW3, or otherwise throughout the trial. In these facts and

circumstances, the argument advanced on behalf of State that accused had an occasion to demand bribe from the Contractor / complainant Sh. Sunil Kumar Chaudhary (PW2) for clearing his pending bills, lacks substance and thus, is liable to be rejected. Same would also create reasonable doubt upon relevant portion of the testimony of PW2 insofar as he deposed that he had to pay the bribe amount to the accused, as in case of non payment thereof, the accused would not have cleared his pending bills.

63. This brings me down to the transcript (Ex. PW2/A) [running into six pages]. Pertinently, it does not contain any conversation relating to any demand of bribe made by accused. Mere use of words by accused 'dena duna aapki shardha pe hai! Kuch kehne ki baat nahi.', without any context, does not imply that there was any demand of bribe by him. As already noted above, it was the case of prosecution that the accused had demanded illegal gratification for the purpose of processing the bills of M/s Hari Om Electronics i.e. the firm of Sunil Chaudhary (PW2) and PW2 had handed over 1500/- to the accused, which was accepted by him as illegal gratification. As discussed hereinabove, the conversation available in the transcript (Ex.PW2/A) does not reveal demand of any illegal gratification by the accused. Thus, the said transcript (Ex.PW2/A), which is stated to be narration of the conversation that allegedly took place at the time of incident, also does not support the case of prosecution, since it lacks any conversation regarding demand having been made by accused. Moreover, the said transcript is claimed to have been prepared by Inspector Manoj Kumar (PW34) only on 11.09.2017 i.e. after a considerable delay of more than 3 and half years from 28-02-2024 i.e. the date of alleged sting operation. No reason or any justification whatsoever for causing such inordinate delay in preparing such transcript on the part of IO, is forthcoming. It is an undisputed fact that DVD (Ex.P3) containing raw footage of alleged sting operation, had already been handed over by PW15 Sh. Rahul Khanna to PW10 Inspector Satender Dhull on 31.03.2014 itself. In the backdrop of these facts and circumstances, the possibility of tampering with the contents thereof, cannot be ruled out. Moreover, when the genuineness and authenticity of the contents of said DVD (Ex.P3) itself is in doubt for want of competence of PW15 to issue the requisite Certificate under S. 65-B of Indian Evidence Act (Ex.PW15/D) in support of said DVD, and it being not in conformity with S. 65-B (4) of the said Act, for the reasons to be mentioned in subsequent para(s) of this judgment, no evidentiary value can be attached to such transcript (Ex.PW2/A) in the eyes of law.

64. Accordingly, this Court is of the considered view that the prosecution has failed to prove beyond reasonable doubt the basic foundational facts that the accused had demanded bribe from PW2 for clearing his pending bills, and/or that the accused had obtained any amount from him as illegal gratification, either by corrupt or illegal means or by abusing his position as public servant.

Electronic Evidence

65. In so far as the electronic evidence is concerned, the testimonies of PW10 Inspector Satender Dhull, PW15 Sh. Rahul Khanna, Chief Manager (HR & Legal) India TV, PW22 Dr. C. P. Singh, FSL Expert and PW24 Sh. Geetesh Patel, FSL Expert, are relevant.

66. PW10 IO/Insp. Satender Dull deposed that on 31.03.2014, Sh. Rahul Khanna (PW15) had presented a DVD make 'SONY' containing the entire raw footage of the sting, alongwith Certificate u/s 65-B of Indian Evidence Act. The said DVD containing raw footage, brought from the office of India TV, was marked as Exhibit-1. A second copy thereof containing raw footage of sting operation, was prepared by him at the office of ACB in the presence of panch witness namely Satbir and said copy was marked as Exhibit-1A. He further deposed that DVD Exhibit-1 was deposited in the Malkhana and DVD Exhibit-1A was kept in file for further investigation. Further, the application (Ex.PW10/B) seeking permission for 'authorized judicial edit of DVD Exhibit-1' was allowed by the Court and consequently, the said DVD was sent to FSL Rohini for its authorized judicial edit.

67. PW10 further deposed that on 27.11.2014, he alongwith panch witness Sh. Santoshi, Sh. Farooq Newazi and Sh. R. P. Gupta, had reached FSL Rohini, where said Farooq Newazi had identified the sting from starting time till ending time of each official in DVD Exhibit-1, on which, he had prepared Observation-Cum-Judicial Edit Memo (Ex.PW10/C) in that regard.

68. PW10 further deposed that on 11.12.2014, he alongwith Sh. Deepak Ahuja and Ct. Sanjay Malik had visited FSL, Rohini and got identified each official of PWD appearing in the sting contained in DVD Exhibit-1, on which, he had prepared Identification Memo (Ex.PW10/D) in that regard. Thereafter, FSL officials separated each portion and prepared 9 DVDs containing particular portion of sting in respect of each official of PWD. He further deposed that FSL had made three DVDs of each official, out of which, two were kept in sealed condition duly sealed with the seal of FSL and one was kept in open condition, which was handed over to him. He identified the said DVD, which allegedly contained sting of accused, as Ex.PW2/Article-2 and DVD Exhibit-1, as was provided to him by Sh. Rahul Khanna (PW15), as Ex.P3 during trial.

69. During his cross-examination, he testified that when he had visited the office of India TV on 31.03.2014, he had asked for original recording device, storage device, raw sting alongwith other documents, however, he was only provided with raw sting footage on the pretext that other equipment and storage devices were being used by their channel for their operations and same could not be spared. He feigned ignorance as to whether the storage of raw sting was in the server of India TV or Computer System. He deposed that since compiled CD of all the stings, was given by Legal Head of India TV, he could not say which device was used to compile the same. He, however, admitted that there was no written communication from India TV to indicate that recording device, storage device and other equipment were being used in other operations.

70. After attention of PW10 was drawn towards letter dated 31.03.2014 (Ex.PW10/DA), he deposed that said letter was given to him alongwith the aforesaid DVD by PW15 Sh. Rahul Khanna, in response to letter dated 27.03.2014 (Ex.PW10/DB), issued by him. He denied the suggestion that he did not ask for the original recording device, storage device and other equipment used to conduct the sting operations. He admitted not to have observed from raw footage provided by India TV in the form of DVD, as to whether the footages were in continuity or otherwise. He also could not tell as to whether some of the stings in the said DVD, were more than 2-3 years old, or even older and also as to whether the DVD provided by India TV, was screen recording or not. However, he denied the suggestion that DVD was not the original raw footage, but was edited one, or it was merely

compiled version of the sting operations.

71. PW15 Sh. Rahul Khanna deposed that he had handed over raw footage of the sting operation telecast held on 22/23.03.2014 to Inspector Satender Dhull (PW10) on 31.03.2014, vide letter (Ex.PW15/B). Later on, he had provided Certificate under S. 65-B of Indian Evidence Act (Ex.PW15/D) alongwith his reply dated 18.01.2019 (Ex.PW15/C) to Inspector Manoj Kumar in response to his notice (Mark PW15/X) for providing such Certificate.

72. PW15 further deposed that he had sent reply dated 15.04.2017 (Ex.PW15/I) in response to notice (Ex.PW15/H) received from Inspector Manoj Kumar, whereby, he had asked for providing original recording instrument alongwith connecting cable through which sting video was recorded in PWD office during the month of February, 2014. As per said reply (Ex.PW15/I), it was intimated by PW15 to the IO that said video camera including its battery through which the sting was recorded, had limited life of about 1 year and such video cameras are un-repairable and therefore, were disposed off and they were not in possession of said video camera. He, however, identified the said DVD containing raw footage (Ex.P3), as provided by him to PW10, during trial.

73. During his cross-examination, he feigned ignorance about the time duration during which the sting operations were conducted, as also about the number of sting operations and their respective duration contained in DVD (Ex.P3). He testified that he had seen the footage in bits and pieces at the time of handing over the same to PW10.

74. PW15 further deposed that sting operation was downloaded in the said DVD (Ex.P3) by IT Department in his presence, however, he did not remember his name and he had no knowledge as to in which camera, the said sting operation was video-graphed and also as to when and by whom the footage was transferred from device to the computer. He, however, volunteered that it was done by IT Department. He admitted that he did not have access to the said computer in which video recording was saved, nor, he was aware of the password of the files containing said video recording. He also could not disclose as to after how many days of the footage being transferred from recording device to the computer, the said DVD (Ex.P3) was prepared.

75. Not only this, PW15 testified that the Certificate (Ex.PW15/D) was provided by the lawyers, who were on Retainership of his company, after they were informed about the purpose of said Certificate and were also provided with the relevant details of the sting operation. He deposed that his core area was with H.R. He never met the person who had requested for conducting the sting operation in question and had no personal knowledge of said sting operation. He admitted that neither the computer, on which footage was transferred from the recording device, was seized, nor, any information was sought regarding said computer by IO during investigation.

76. PW22 Dr. C. P. Singh is the FSL Expert, who had carried out authorized judicial edit of video footage contained in DVD marked Exhibit-1. He deposed that said DVD contained "28" identified video shots, which were found connected by using software for capturing on screen display. 12 relevant video footages identified by the stinger team member, were split serially from the video footages of said DVD and those segregated shots were given file names as AVF1 to AVF12 and were

produced in 9 separate DVDs, which were marked as "DVD1 to DVD9". He proved copy of his report dated 23.02.2014 in that regard as Ex.PW22/A. He also identified DVD marked Exhibit-1 [Ex.PW2/Article-2], and DVD (Ex.P3) containing sting operation in question during trial.

77. During his cross-examination, he deposed as under:-

"Qn. I put it to you when any footage is termed as raw footage, it is the exact footage captured by the device and not the copy of the footage. What you have to say?

Ans. I have not used the term raw footage in my report.

Qn. Will the DVD Ex.P3 that was examined by you can be stated to be containing raw footage?

Ans. It is not raw footage as the raw footage should be the output of the capturing device i.e. camera on to a tape cassette or a memory device.

I did not examine the device with which the footage was made.

Qn. Can you say what was the frame rate of the device for capturing the video footage?

Ans. The frame rate by which the videos were captured were not ascertained."

78. PW24 Sh. Geetesh Patel is concerned FSL Expert, who had examined the voice samples of complainant Sh. Sunil Kumar Chaudhary (PW2) and accused. He deposed that during his initial examination of voice contained in DVD-R containing audio-video file 'AVF9.mpg' and voice sample of speaker contained in audio cassette marked "RKVS", no opinion could be provided as the voice exhibit of speaker contained in audio cassette marked "RKVS" was having insufficient acoustic cues and other linguistic phonetic features. However, he had opined, vide his report (Ex.PW24/A) that the voice exhibit of speaker marked Exhibit-Q2 contained in DVD-R and that of the voice of speaker marked Exhibit-S2 contained in audio cassette marked "SCVS" was of the same person i.e. Sh. Sunil Chaudhary.

79. PW24 further deposed that on 21.06.2019, he had again examined another DVD-R, which was marked as Exhibit-1 and the audio cassette, which was marked as Exhibit-2 in the laboratory, and opined vide his report (Ex.PW24/B) that voice exhibit of speaker available in marked Exhibit-Q1 and that of voice of speaker available in the said audio cassette, were of same person i.e. Sh. Rajesh Kumar Sharma (accused). He identified the said DVDs and audio cassettes during trial.

80. During his cross-examination, he deposed here as under:-

xxxx I cannot say that the questioned voice was recorded directly or was copied from one device to the other. The duration of the recordings is not mentioned in the report.

(Vol. I can tell after checking my record). The questioned recording in my reports Ex.PW24/A and Ex.PW24/B was the same as it was the same exhibit. For the second report, fresh voice sample of Sunil Chaudhary was not taken. Same procedure was adopted for preparing the reports Ex.PW24/A and Ex.PW24/B. xxxx The duration of the sample voice of Rajesh Kumar Sharma i.e. Exhibit- S1 was 11 minutes and 34 seconds in Ex.PW24/A. The duration of the sample voice of Rajesh Kumar Sharma is not available on the clue word record in respect of Ex. PW24/B. It is correct that the duration of the sample voice is not mentioned in my reports.....It is correct that in my report there is no value of linguistic or phonetic features inclusive of format frequency distribution, intonation pattern and frequency time coordination distribution. (Vol. The above said relevant data of case examination parameters are available in case examination record). I had not sent the relevant data to the 10 with my report. Qn. I put it to you by using a software, the conversation recorded in audio can be tampered. What have you to say? Ans. It can be done. (Vol. But in different duration.) xxxx

81. Thus, conjoint reading of the testimonies of aforesaid witnesses would clearly demonstrate that neither the spy camera, nor the memory card containing the original raw footage, were handed over to IO throughout the investigation and consequently, same were not not to FSL for their examination. For the similar reason, the said original device i.e. memory card /spy camera, if any, could not be brought on judicial record. Moreover, the relevant details i.e. the make, number or other details of said spy camera and/or the memory card allegedly used during the sting operation, have also not been brought on record.

82. It may be noted that in Court in its own motion vs. State, ILR (2008) II Delhi 44, the Hon'ble Delhi High Court laid down certain guidelines before conducting any sting operation, which apparently have not been followed in the present case. In the said judgment, Hon'ble Delhi High Court has observed that the right to freedom of press is a valuable right, but the right carries with it responsibility and duty to be truthful and to protect rights of others. The guidelines were laid down as safeguards against use of false and fabricated sting operations that are used to earn more and to have higher TRP ratings. It was also observed that truth is required to be shown in public interest and the same can be shown whether in the nature of a sting operation or otherwise, however, entrapment of any person ought not to be resorted to and should not be permitted.

83. Similarly, Hon'ble Supreme Court in Rajat Prasad vs. CBI, 2014 6 SCC 495, has made the following observations:

"Thus, sting operations conducted by the law enforcement agencies themselves in the above jurisdictions have not been [1980] AC 402 ([2001] UKHL 53) recognized as absolute principles of crime detection and proof of criminal acts. Such operations by the enforcement agencies are yet to be experimented and tested in India and legal acceptance thereof by our legal system is yet to be answered. Nonetheless, the question that arises in the present case is what would be the position of such operations if conducted not by a State agency but by a private individual and the

liability, not of the principal offender honey trapped into committing the crime, but that of the sting operator who had stained his own hands while entrapping what he considers to be the main crime and the main offender. Should such an individual i.e. the sting operator be held to be criminally liable for commission of the offence that is inherent and inseparable from the process by which commission of another offence is sought to be established? Should the commission of the first offence be understood to be obliterated and extinguished in the face of claims of larger public interest that the sting operator seeks to make, namely, to expose the main offender of a serious crime injurious to public interest? Can the commission of the initial offence by the sting operator be understood to be without any criminal intent and only to facilitate the commission of the other offence by the "main culprit" and its exposure before the public? These are some of the ancillary questions that arise for our answer in the present appeals and that too at the threshold of the prosecution i.e. before the commencement of the trial."

84. Ld. Chief PP for the State contended that FSL expert having examined and compared voice samples of accused and Sh. Sunil Kumar Chaudhary with the voices found appearing in the DVD-R [Ex.PW-2/Article-2] and Audio Cassettes [Ex.PW2/Article-4 (complainant), and Ex.PW18/Article-4 (accused)], did not find any evidence of tampering or alteration in such audio-video file and has also opined that sample voice of accused and complainant, when compared with the voices of the speakers appearing in said DVD-R [Ex.PW-2/Article-2], were voice of same persons i.e. Rajesh Kumar Sharma (accused herein), and of Sh. Sunil Kumar Chaudhary (complainant herein). He, thus, contended that the guilt of accused stands duly established from the ocular testimony of FSL Expert (PW24) and his reports (Ex.PW24/A and Ex.PW24/B). However, the said argument needs to be recorded only for being rejected for the following reasons:-

84.1 Firstly, opinion of FSL expert can only be used as a corroborative piece of evidence and not as a substantive piece of evidence and thus, would not be sufficient in itself to establish the guilt of accused beyond reasonable doubt. In this regard, reliance may be placed upon the case of "Ashish Kumar Dubey v. State Thr. CBI" reported as 2014 SCC OnLine Del 1437, wherein the cassette recorder which was used by a witness to record the conversation, was not sent to CFSL and only cassette was sent. After discussing the case of 'Ram Singh v. Col. Ram Singh' 1985 Supp. SCC 611; and 'Nilesh Dinkar Paradhar v. State of Maharashtra' Criminal Appeal No.537 of 2009, decided on 09-03-2011, it was held in the case of Ashish Kumar Dubey (supra) that the cassette was an inadmissible piece of evidence. Further, it has been held in the case of Ram Singh (supra) that the voice of speaker must be duly identified by the maker of the record or by others who recognized his voice which is first condition for admissibility and where voice is denied by the maker, it would require very strict proof to determine whether or not it was really the voice of the speaker. It was also held that accuracy of tape recorded statements has to be proved by the maker of the record satisfactorily and every possibility of tampering with or eraser of a part of tape recorded statement, must be ruled out; the recorded cassette must be carefully seized and kept in safe or official custody. It was also held that voice of speaker should be

clearly audible and not lost or distorted by other sounds or disturbances. In the case of Nilesh Dinkar Paradhar (supra), it was held that it is all the more necessary since tape recording may be altered by the transposition, excision and insertion of words or phrases and such alternation may escape detection and even elude it on examination by technical experts.

84.2 Secondly, PW24 admitted during his cross-examination that he could not say that the questioned voice was recorded directly or was copied from one device to the other and also that duration of the recordings is not mentioned by him in his report. He also admitted that duration of the voice sample of speakers, is also not mentioned in his both the reports (Ex.PW24/A and Ex.PW24/B).

84.3 Thirdly, PW24 admitted that by using a software, the conversation recorded in audio can be tampered. Said portion of his testimony assumes importance in the light of relevant portion of the testimony of PW10 Inspector Satender Dhull, whereby, he admitted not to have observed whether the raw footages contained in DVD (Ex.P3) were in continuity or otherwise and also could not say as to whether said DVD was screen recording or not.

PW10 also admitted not to have investigated from PW15 Sh. Rahul Khanna about the device, which was used to compile all the nine sting operations in the aforesaid DVD.

85. Apart from above, it is an undeniable fact that spy cam/ memory card allegedly used for conducting sting operation of accused, were never sent to FSL for examination. Thus, in the absence of examination thereof by FSL expert, the possibility of tampering of electronic data available in the form of DVD (Ex.P3) being relied upon by prosecution, cannot be ruled out, since, one of the important requirements as held in the case of Ashish Kumar Dubey (supra) was not satisfied. It is relevant to note that the sting operation allegedly took place on 28-02-2014; and DVD (Ex.P3) was seized on 31-03-2014, however, its transcription (Ex.PW2/A) was prepared only on 11-09-2017, which is after a considerable gap of more than 3-1/2 years from the date of its seizure. Further, the relevant DVD (Ex.PW2/Article-2) containing authorized judicial edit of the sting operation in question was prepared by PW22 Dr. C. P. Singh on 22-04-2014, still, the said DVD (Ex.PW2/Article-2) was sent to FSL for its examination vis-a-vis voice sample of accused and the complainant i.e. PW2 only on 05-01-2018 i.e. after a considerable gap of more than 3-1/2 years of the said date. In this backdrop, it would be totally unsafe to place any reliance or to attach any evidentiary value to the electronic data contained therein. Consequently, it cannot be said that the opinion of FSL expert, which is based upon comparison of such electronic data contained in such DVD and Audio Cassette, would be conclusive.

86. Needless to state that source and authenticity are two hallmarks pertaining to electronic record, which is sought to be used in evidence. For the admissibility of any secondary evidence in digital form, a certificate under Section 65B of Indian Evidence Act is a mandatory requirement. The requirement of Certificate u/s 65-B of Indian Evidence Act is to rule out any tampering of the electronic record and it is the threshold to be crossed in order to render the secondary evidence of

electronic record, admissible in evidence.

87. It needs no emphasis that the source of original electronic record has to be proved. In the present case, the original electronic record i.e. a video-recording was statedly made by PW2 Sh. Sunil Kumar Chaudhary with the help of spy camera, which was allegedly provided to him by PW6 Sh. Farooq Newazi, who had got issued it from his office i.e. India TV where he was working as Principal Correspondent and PW2 had allegedly conducted the sting operation in question with the help of said spy camera. Admittedly, the said spy camera/ memory card containing the original recording, have not been brought on record.

88. It is, therefore, to be seen as to whether it is proved that the DVDs [Ex.P3 pertaining to sting of 9 PWD officials and Ex.PW2/Article-1 related to accused and which was prepared by FSL after judicial edit] containing the sting operation in question, constitutes secondary evidence of the original electronic record, as contained in the spy camera/memory card, in terms of Section 65-B of Indian Evidence Act.

89. It is pertinent to note that no Certificate u/s 65B of Indian Evidence Act has been given by PW22 Dr. C. P. Singh, FSL Expert, while carrying out the authorized judicial edit of the sting operation and hence, there is no Certificate u/s 65B of Indian Evidence Act in support of DVD (Ex.PW2/Article-2), as is being relied upon by the prosecution in connection with the present accused and thus, the said DVD is inadmissible in evidence.

90. As already mentioned earlier, the spy camera and the memory card containing original recording, are not produced during trial, on the premise that they were stated to be not available, in view of reply (Ex.PW15/I) of PW15 Sh. Rahul Khanna. It is relevant to note that PW15 had supplied audio-video recording contained in DVD [Ex.P3] during investigation on 31.03.2014. The said DVD [Ex.P3] is stated to contain raw footage of the sting operation, which was telecast on 22.03.2014 and 23.03.2014. However, it is noticeable that PW15 had provided Certificate under S.65-B of Indian Evidence Act [Ex.PW15/D] only on 18-01-2019 i.e. after a considerable delay of about 5 years or so, and no explanation whatsoever has been furnished by either of the IOs examined during trial, for such considerable delay in collecting such Certificate by them from the said witness.

91. At this juncture, it would be apposite to reproduce the contents of said Certificate (Ex.PW15/D), which read here as under:-

"Date:- 18.01.2019 Certificate Under Section 65B of the Indian Evidence Act.

To the best of my knowledge and belief, the complete, unedited & raw DVD recording of the sting operation on PWD officials telecasted on our channel on 22 March 2014 provided by us to Inspector Satender Dhull of ACB has been :

(a) produced from the computer during the period over which the computer was used regularly to store or process information for the purposes of any activities regularly carried on over that period by the person having lawful control over the use of the

computer.

(b) During the said period, information of the kind contained in the electronic record or of the kind from which the information so contained is derived was regularly fed into the computer in the ordinary course of the said activities.

(c) 'Throughout the material part of the said period, the computer was operating properly or, if not, then in respect of any period in which it was not operating or was out of operation during that part of the period, was not such as to affect the electronic record or the accuracy of its contents; and

(d) The information contained in the electronic record reproduces or is derived from such information fed into the computer in the ordinary course of the said activities.

For Independent News Services Pvt. Ltd. Sd/-

Rahul Khanna AGM- HR & LEgal"

92. It is quite evident that the aforesaid Certificate (Ex.PW15/D) does not meet the requirements of S.65-B (4) of Indian Evidence Act for the following reasons:-

92.1 A perusal of the aforesaid certificate reveals that that it is a sketchy certificate bereft of necessary particulars as envisaged in S. 65-B (4) of Indian Evidence Act. No description or other details of the device used in the production of electronic record, have been mentioned therein, besides other essential details. For the said reason also, it cannot be said that the electronic evidence in the present case as contained in DVD [Ex.P3] qua the present accused, has been proved in accordance with law.

92.2 PW15 categorically deposed that sting operation was downloaded in the DVD (Ex.P3) by IT Department, as also that his core area was Human Resource Department. In this backdrop, it cannot be said that he was competent to issue said Certificate;

92.3 PW15 did not disclose the name of official of IT Department who had downloaded the alleged sting operation in the said DVD;

92.4 PW15 had no knowledge as to in which spy camera, the alleged sting operation was video-graphed;

92.5 PW15 could not disclose as to when and by whom the footage was transferred from the device to the computer on the premise that same was done by IT Department and the file containing video recording was password protected and he neither had access to the said computer in which video recording was saved, nor, he was aware of the password of the file containing said video recording;

92.6 PW15 was also not aware if the sting operations were conducted in one day, two day, or over a period of how many days and also how many number of sting operations were contained in DVD (Ex.P3);

92.7 PW15 also could not disclose as to after how many days of the footage being transferred from recording device to the computer, the said DVD (Ex.P3) was prepared;

92.8 There is also a candid admission on the part of PW15 that said Certificate (Ex.PW15/D) was provided by lawyers, who were on Retainership of his company, when they were informed about the details regarding sting operation and the purpose for which said Certificate was required;

92.9 PW15 admitted that he had no personal knowledge of the sting operation in question;

92.10 PW15 categorically testified that neither computer on which video footage was transferred from the recording device, was seized, nor any information was sought regarding such computer by the IO;

92.11 PW34 Inspector Manoj Kumar (IO) has also admitted, during his cross-examination, Mr. Rahul Khanna (PW15) had no di

connection/ role with the sting operation carried out in the present case and also that PW15 was not from IT Department of India TV News Channel;

92.12 PW34 also deposed having not specifically asked from PW15 as to whether or not he had himself seen the entire footage of the sting operation;

92.13 PW34 admitted that he did not seize the computer in which contents/ raw footage of recording device was transferred, during investigation; and 92.14 PW34 admitted that there were other sound also in DVD (Ex.P3) and the accused is seen talking to someone on phone therein.

93. Moreover, the Certificate [Ex.PW15/D] has been issued by PW15 on 28-01-2019, i.e. after a considerable delay of about five years from the date of coming into existence of said DVD. No explanation whatsoever has been furnished from the side of prosecution for such inordinate delay.

94. There are other aspects involved in this matter. The alleged sting operation, as per the case of prosecution, was conducted on 28.02.2014 and same was aired on India TV News Channel on 22nd and 22rd March, 2014, based on which, complaint dated 24.03.2014 (Ex.PW4/A) had been received in the office of Addl. C.P., ACB,

Delhi.

The prosecution story further recited that with regard to alleged contents in the said complaint, an inquiry was got conducted through PW10 Inspector Satender Dhull and during such inquiry, PW10 had collected DVD (Ex.P3) from PW15 on 31.03.2014. Upon completion of inquiry, FIR in question came to be registered on 13.06.2014. In this backdrop, it was the bounden duty of Investigating Agency to collect the material piece of evidence i.e. spy camera and its memory card containing original recording of sting operation allegedly conducted by complainant Sh. Sunil Kumar Chaudhary (PW2), alongwith journalist namely Sh. Farooq Newazi (PW6), at the earliest available opportunity. However, the evidence, which has come on record during trial, would show that no effort was made by either of the IOs to seize recording device i.e. spy camera and/or its memory card till 24.03.2017, on which date only, IO Inspector Manoj Kumar (PW34) is found to have issued notice under S. 91 Cr.PC (Ex.PW15/H) to PW15 Sh. Rahul Khanna, thereby asking him to provide original recording instrument alongwith connecting cables, through which sting videos were recorded in PWD office during the month of February, 2014. Thus, it is duly established on record that there was an inordinate delay of about three years on the part of investigating agency for making such request to the office of India TV News Channel for providing original recording device and memory card containing original audio-video recording of alleged sting operation, for which, no explanation/reason whatsoever has been furnished by IOs when they were examined during trial. In view of reply (Ex.PW15/I) already referred to hereinbefore, whereby it was stated that such recording device and memory card had limited life span of one year, same were unrepairable, non collection/ seizure of such recording device and memory card caused material piece of evidence to disappear. In this regard, it would be appropriate to refer to the relevant portion of cross-examination of PW34 Inspector Manoj Kumar. Same reads as under:-

"xxxx On 30.06.2016, I was posted as Inspector in ACB Delhi. On that day, investigation of this case was marked to me. xxxx ... When the investigation of this case was entrusted to me and I had gone through the case file, I did not find any document suggesting that any effort was made by previous Investigation Officer(s) to seize the said recording device.

xxxx"

95. In the cited case of Anvar P. V. (supra), it has been held by Hon'ble Apex Court, as under:-

"xxxx

13. Any documentary evidence by way of an electronic record under the Evidence Act, in view of Sections 59 and 65A, can be proved only in accordance with the procedure prescribed under Section 65B. Section 65B deals with the admissibility of the electronic record. The purpose of these provisions is to sanctify secondary evidence in electronic form, generated by a computer. It may be noted that the Section starts with a non- obstante clause. Thus, notwithstanding anything contained in the Evidence Act, any information contained in an electronic record which is printed on a paper,

stored, recorded or copied in optical or magnetic media produced by a computer shall be deemed to be a document only if the conditions mentioned under sub- Section (2) are satisfied, without further proof or production of the original. The very admissibility of such a document, i.e., electronic record which is called as computer output, depends on the satisfaction of the four conditions under Section 65B(2). Following are the specified conditions under Section 65B(2) of the Evidence Act:

(i) The electronic record containing the information should have been produced by the computer during the period over which the same was regularly used to store or process information for the purpose of any activity regularly carried on over that period by the person having lawful control over the use of that computer;

(ii) The information of the kind contained in electronic record or of the kind from which the information is derived was regularly fed into the computer in the ordinary course of the said activity;

(iii) During the material part of the said period, the computer was operating properly and that even if it was not operating properly for some time, the break or breaks had not affected either the record or the accuracy of its contents; and

(iv) The information contained in the record should be a reproduction or derivation from the information fed into the computer in the ordinary course of the said activity.

14. Under Section 65B(4) of the Evidence Act, if it is desired to give a statement in any proceedings pertaining to an electronic record, it is permissible provided the following conditions are satisfied:

(a) There must be a certificate, which identifies the electronic record containing the statement;

(b) The certificate must describe the manner in which the electronic record was produced;

(c) The certificate must furnish the particulars of the device involved in the production of that record;

(d) The certificate must deal with the applicable conditions mentioned under Section 65B(2) of the Evidence Act; and

(e) The certificate must be signed by a person occupying a responsible official position in relation to the operation of the relevant device.

15. It is further clarified that the person need only to state in the certificate that the same is to the best of his knowledge and belief. Most importantly, such a certificate must accompany the electronic record like computer printout, Compact Disc (CD), Video Compact Disc (VCD), pen drive, etc.,

pertaining to which a statement is sought to be given in evidence, when the same is produced in evidence. All these safeguards are taken to ensure the source and authenticity, which are the two hallmarks pertaining to electronic record sought to be used as evidence. Electronic records being more susceptible to tampering, alteration, transposition, excision, etc. without such safeguards, the whole trial based on proof of electronic records can lead to travesty of justice.

16. xxx

17. The Evidence Act does not contemplate or permit the proof of an electronic record by oral evidence if requirements under Section 65B of the Evidence Act are not complied with, as the law now stands in India. Xxxx

22. The evidence relating to electronic record, as noted herein before, being a special provision, the general law on secondary evidence under Section 63 read with Section 65 of the Evidence Act shall yield to the same. Generalia specialibus non derogant, special law will always prevail over the general law. It appears, the court omitted to take note of Sections 59 and 65A dealing with the admissibility of electronic record. Sections 63 and 65 have no application in the case of secondary evidence by way of electronic record; the same is wholly governed by Sections 65A and 65B. To that extent, the statement of law on admissibility of secondary evidence pertaining to electronic record, as stated by this court in Navjot Sandhu case (supra), does not lay down the correct legal position. It requires to be overruled and we do so. An electronic record by way of secondary evidence shall not be admitted in evidence unless the requirements under Section 65B are satisfied. Thus, in the case of CD, VCD, chip, etc., the same shall be accompanied by the certificate in terms of Section 65B obtained at the time of taking the document, without which, the secondary evidence pertaining to that electronic record, is inadmissible.

23. The appellant admittedly has not produced any certificate in terms of Section 65B in respect of the CDs, Exhibits-P4, P8, P9, P10, P12, P13, P15, P20 and P22. Therefore, the same cannot be admitted in evidence. Thus, the whole case set up regarding the corrupt practice using songs, announcements and speeches fall to the ground.

xxxx"

96. In another case of 'Arjun Panditrao Khotkar v. Kailash Kushanrao Gorantyal & Ors.' reported as [2020] 7 S.C.R. 180; it has been held by Hon'ble Apex Court, as under:-

"xxxxx

20. Proof of electronic record is a special provision introduced by the IT Act amending various provisions under the Evidence Act. The very caption of Section 65-A of the Evidence Act, read with Sections 59 and 65- B is sufficient to hold that the special provisions on evidence relating to electronic record shall be governed by the procedure prescribed under Section 65- B of the Evidence Act. That is a complete

code in itself. Being a special law, the general law under Sections 63 and 65 has to yield.

21. In *State (NCT of Delhi) v. Navjot Sandhu* a two-Judge Bench of this Court had an occasion to consider an issue on production of electronic record as evidence. While considering the printouts of the computerised records of the calls pertaining to the cellphones, it was held at para 150 as follows: (SCC p. 714) "150. According to Section 63, 'secondary evidence' means and includes, among other things, 'copies made from the original by mechanical processes which in themselves insure the accuracy of the copy, and copies compared with such copies'. Section 65 enables secondary evidence of the contents of a document to be adduced if the original is of such a nature as not to be easily movable. It is not in dispute that the information contained in the call records is stored in huge servers, which cannot be easily moved and produced in the court. That is what the High Court has also observed at para 276. Hence, printouts taken from the computers/servers by mechanical process and certified by a responsible official of the service- providing company can be led in evidence through a witness who can identify the signatures of the certifying officer or otherwise speak of the facts based on his personal knowledge. Irrespective of the compliance with the requirements of Section 65- B, which is a provision dealing with admissibility of electronic records, there is no bar to adducing secondary evidence under the other provisions of the Evidence Act, namely, Sections 63 and

65. It may be that the certificate containing the details in sub-section (4) of Section 65-B is not filed in the instant case, but that does not mean that secondary evidence cannot be given even if the law permits such evidence to be given in the circumstances mentioned in the relevant provisions, namely, Sections 63 and 65."

It may be seen that it was a case where a responsible official had duly certified the document at the time of production itself. The signatures in the certificate were also identified. That is apparently in compliance with the procedure prescribed under Section 65- B of the Evidence Act. However, it was held that irrespective of the compliance with the requirements of Section 65-B, which is a special provision dealing with admissibility of the electronic record, there is no bar in adducing secondary evidence, under Sections 63 and 65, of an electronic record."

22. The evidence relating to electronic record, as noted hereinbefore, being a special provision, the general law on secondary evidence under Section 63 read with Section 65 of the Evidence Act shall yield to the same. *Generalia specialibus non derogant*, special law will always prevail over the general law. It appears, the court omitted to take note of Sections 59 and 65- A dealing with the admissibility of electronic record. Sections 63 and 65 have no application in the case of secondary evidence by way of electronic record; the same is wholly governed by Sections 65-A and 65- B. To that extent, the statement of law on admissibility of secondary evidence pertaining to electronic record, as stated by this Court in *Navjot Sandhu* case, does not lay down the correct legal position. It requires to be overruled and we do so. An electronic record by way of secondary evidence shall not be admitted in evidence unless the requirements under Section 65- B are satisfied. Thus, in the case

of CD, VCD, chip, etc., the same shall be accompanied by the certificate in terms of Section 65-B obtained at the time of taking the document, without which, the secondary evidence pertaining to that electronic record, is inadmissible.

23. The appellant admittedly has not produced any certificate in terms of Section 65- B in respect of the CDs, Exts. P- 4, P- 8, P- 9, P- 10, P- 12, P- 13, P- 15, P- 20 and P-22. Therefore, the same cannot be admitted in evidence. Thus, the whole case set up regarding the corrupt practice using songs, announcements and speeches fall to the ground.

Xxxxxx

34. Despite the law so declared in *Anvar P.V. (supra)*, wherein this Court made it clear that the special provisions of Sections 65A and 65B of the Evidence Act are a complete Code in themselves when it comes to admissibility of evidence of information contained in electronic records, and also that a written certificate under Section 65B(4) is a sine qua non for admissibility of such evidence, a discordant note was soon struck in *Tomaso Bruno (supra)*. In this judgment, another three Judge Bench dealt with the admissibility of evidence in a criminal case in which CCTV footage was sought to be relied upon in evidence. The Court held:

"24. With the advancement of information technology, scientific temper in the individual and at the institutional level is to pervade the methods of investigation. With the increasing impact of technology in everyday life and as a result, the production of electronic evidence in cases has become relevant to establish the guilt of the accused or the liability of the defendant. Electronic documents *stricto sensu* are admitted as material evidence. With the amendment to the Evidence Act in 2000, Sections 65-A and 65- B were introduced into Chapter V relating to documentary evidence. Section 65- A provides that contents of electronic records may be admitted as evidence if the criteria provided in Section 65- B is complied with. The computer generated electronic records in evidence are admissible at a trial if proved in the manner specified by Section 65- B of the Evidence Act. Sub-section (1) of Section 65- B makes admissible as a document, paper printout of electronic records stored in optical or magnetic media produced by a computer, subject to the fulfilment of the conditions specified in sub- section (2) of Section 65- B. Secondary evidence of contents of document can also be led under Section 65 of the Evidence Act. PW 13 stated that he saw the full video recording of the fateful night in the CCTV camera, but he has not recorded the same in the case diary as nothing substantial to be adduced as evidence was present in it.

25. The production of scientific and electronic evidence in court as contemplated under Section 65-B of the Evidence Act is of great help to the investigating agency and also to the prosecution. The relevance of electronic evidence is also evident in the light of *Mohd. Ajmal Amir Kasab v. State of Maharashtra [(2012) 9 SCC 1]*, wherein production of transcripts of internet transactions helped the prosecution case a great deal in proving the guilt of the accused. Similarly, in *State (NCT of Delhi) v. Navjot*

Sandhu, the links between the slain terrorists and the masterminds of the attack were established only through phone call transcripts obtained from the mobile service providers."

35. What is clear from this judgment is that the judgment of Anvar P.V. (supra) was not referred to at all. In fact, the judgment in State v. Navjot Sandhu (2005) 11 SCC 600 was adverted to, which was a judgment specifically overruled by Anvar P.V. (supra). It may also be stated that Section 65B(4) was also not at all adverted to by this judgment. Hence, the declaration of law in Tomaso Bruno (supra) following Navjot Sandhu (supra) that secondary evidence of the contents of a document can also be led under Section 65 of the Evidence Act to make CCTV footage admissible would be in the teeth of Anvar P.V., (supra) and cannot be said to be a correct statement of the law. The said view is accordingly overruled xxxx".

97. The prosecution has, thus, failed to prove beyond reasonable doubt that the integrity of the recording qua accused was maintained and that the said recording was not altered before handing over of DVD [Ex.P3] which also contained sting recording of the present case, to the IO, on the basis of which DVD [Ex.PW2/Article-2] was prepared at FSL. In these circumstances, neither the source, nor authenticity of the original recording of the present case has been proved by the prosecution beyond reasonable doubt. Hence, the FSL reports regarding auditory analysis of the voices of the speakers in DVD [Ex.PW2/Article-2], as also transcript [Ex.PW2/A], which is based on the said video recording, cannot be relied upon by the prosecution to further its case against the accused.

98. That being so, the Court is of the view that the prosecution has failed to establish the genuineness and authenticity of the contents of electronic data contained in said DVDs [Ex.P3 and Ex.PW2/Article-2] during trial.

99. In the light of aforesaid facts and circumstances and while applying the ratio of law laid down by Hon'ble Apex Court in the above referred decisions, this Court finds considerable force in the arguments advanced on behalf of accused that the audio-video recording contained in aforesaid DVD (Ex.P3), would neither constitute any material piece of evidence, nor would it be sufficient in itself to bring home the guilt of the accused beyond reasonable doubt.

Sanction

100. Now, this Court shall proceed to deal with the argument advanced on behalf of accused that the entire prosecution got vitiated for want of valid and competent sanction since it goes to the very root of the jurisdiction of this Court.

101. In order to appreciate the aforesaid argument, it would be necessary to consider and appreciate the ocular testimony of the Competent Authority namely Sh. Vijay Kumar Dev, the then Chief Secretary of GNCT of Delhi, who has been examined as PW31 during trial.

102. Before proceeding to discuss the testimony of PW31, it is necessary to note that the entire case of prosecution mainly revolved around the alleged sting operation of accused, in the form of raw

footage of all the alleged sting operations of PWD officials as contained in DVD [Ex.P3], and its authorized judicial edit containing the alleged sting operation of present accused, as contained in DVD [Ex.PW2/Article-2]. In this backdrop, it was not only appropriate but necessary for PW31 to see the sting operation in question, while applying his mind to form his opinion as to whether the sanction for prosecution of accused in terms of S. 19 of PC Act, was to be accorded or not. However, PW31 has admitted during his cross-examination that he did not view the sting operation before according the sanction [Ex.PW31/A]. Likewise, PW4 Sh. Deepak Gupta, on whose complaint/ letter [Ex.PW4/A], the FIR in question came to be registered against the accused herein, has also admitted during his cross-examination that he had no personal knowledge about the present case and sting operation and also the averments made in the said complaint. Instead, he testified to have simply forwarded the said complaint on the asking of Principal Secretary, PWD, Govt. of NCT of Delhi.

103. The law on the subject is now well settled by our own Hon'ble High Court in case of 'State Through CBI v. Ravinder Singh', reported as 57 (1995) DLT 506, wherein it has been held that in the absence of proper, legal and valid sanction, the Special Judge will not have the jurisdiction to take cognizance of the offence thereby implying that if the Special Judge after coming to a conclusion that there was no legal sanction, still chooses to proceed in the matter, then the proceedings will be without jurisdiction and illegal. The relevant portion of the said judgment is extracted here as under:-

XXXX

9. It would be seen that sanction as mentioned in Section 19 of the Act is a pre-requisite for taking cognizance of an offence and prosecution for that offence by a Special Judge under the said Act and if at any stage on the basis of material before the Special Judge or it is otherwise brought to the notice of the Special Judge that the basis of cognizance i.e. the sanction suffers from any vice, infirmity or illegality to argue that the Special Judge has to still proceed with the remaining evidence will be an exercise in futility and not only an exercise in futility but will be a great burden on public exchequer and time which is in paucity of the Courts concerned. To test further the contention of the learned counsel for the State that evidence ought to have been recorded by the Special Judge, what would be the net result, even if I assume that the evidence could have been recorded, the ultimate finding again would be to acquit the accused, be-cause the basic foundation on which the Court has taken cognizance suffered from illegality. The Special Judge, after coming to a finding on the basis of evidence, which was led before him, applied his judicial mind and on the basis of all the evidence and material held that there was no legal sanction. Having come to the conclusion that the sanction was not legal, it was incumbent on the Special Judge to discharge the accused. The authorities cited by the learned counsel for the petitioner is of no help to the case of the petitioner. In the absence of proper, legal and valid sanction, the Special Judge will not have the jurisdiction to take cognizance of the offence thereby implying that if the Special Judge after coming to a conclusion that there was no legal sanction, still chooses to proceed in the matter,

then the proceedings will be without jurisdiction and illegal.

xxxx"

104. Applying the facts of the present case on the anvil of the principles laid down in the above referred decision of our own high court, this court is of the view that the Sanction Order [Ex.PW31/A] suffers from the vice of non- application of mind on the part of Competent Authority, in view of what has already been held in the preceding paras of this judgment that no GC notes are seen in the hands of the complainant (PW2), or even in the hands of the accused, and also that one could not see them exchanging GC notes and the complainant is also not seen while handing over anything to the accused and no currency note is visible in the sting operation conducted qua the present accused.

105. Apart from above public witnesses, the remaining prosecution witnesses examined during trial, are either public witnesses in whose presence consent for obtaining the voice samples of complainant Sh. Sunil Kumar Chaudhary and of accused took place; or in whose presence their voice samples were taken in FSL Rohini; or in whose presence the relevant DVDs were allegedly played and its transcription [Ex.PW2/A] was prepared; or the witnesses who had provided relevant documents, including employee data summary of accused, measurement books, bills etc.; or the police officials, who either conducted investigation of this case or remained associated with the investigation in one way or the other. Hence, in the absence of any cogent or reliable evidence being brought on record during trial, the Court is of the considered view that the prosecution remained unsuccessful in establishing that there was any demand and acceptance of illegal gratification against the accused beyond reasonable doubt.

CONCLUSION

106. In view of the foregoing discussion, this Court is of the considered view that the prosecution has failed to establish the charges levelled against accused, beyond reasonable doubt. Consequently, the accused namely Rajesh Kumar Sharma is hereby acquitted of all the charges levelled against him.

107. Considering the fact that the accused has already furnished Bail Bonds in terms of S. 437 A Cr.PC, his previous bail bonds stand cancelled and his previous surety stand discharged. Original document(s), if any, of said previous surety be released, after cancellation of endorsement, if any, as per the Rules.

108. File be consigned to record room, after necessary compliance. by VIDYA VIDYA Date:

Announced in the open Court PRAKASH 2026.02.04 16:56:23 On 4th Day of February,2026. +0530 (VIDYA PRAKASH) SPECIAL JUDGE (PC ACT) (ACB)-01 RADC/NEW DELHI APPENDIX-I SPECIMEN CHART FOR WITNESSES EXAMINED [In compliance of directions issued by Hon'ble Apex Court in 'Manojbhai Jethabhai Parmar (Rohit) v.

State of Gujarat' bearing Criminal Appeal No.(s) 2973 of 2023, decided on 15.12.2025.] PW Name of witness Description No. PW1. SI (Retd.) Krishan Kumar Duty Officer who recorded FIR of the present case.

PW2. Sh. Sunil Kumar Complainant.
Chaudhary

PW3. Sh. Harish Shankar Roy, He is witness who identified the accused Executive Engineer R. K. Sharma, as AAO in the Electrical Division, after seeing the contents of video of DVD, as also witness regarding procedures adopted for floating of tender, award of work etc. PW4. Sh. Deepak Gupta, He wrote letter dated 24.03.2014 to Additional Director Addl. CP, ACB, Delhi to probe the role General (Retd.), CPWD. of 9 officials of PWD about whom telecast were made by India TV on 22.03.2014 and 23.03.2014.

PW5. Sh. Ankit Yadav Panch Witness in whose presence voice sample of complainant was taken / recorded at FSL Rohini in audio cassette and preparation of one copy thereof and their seizure by IO
PW6. Sh. Farooq Newazi, He is the journalist, who accompanied Journalist, India TV complainant Sh. Sunil Kumar Chaudhary for conducting sting operation of 9 officials of PWD.

PW7. Sh. Manoj Kumar Panch Witness in whose presence voice sample of complainant was taken/ recorded at FSL Rohini in audio cassette and preparation of one copy thereof and their seizure by IO and seizure thereof.

PW8. SI (Retd.) Ombir Singh He deposited three pullandas to FSL Rohini.

PW9. Sh. Rahul, Junior Panch Witness in whose presence the Assistant, LNJP Hospital accused was identified in the footage of DVD, by PW3 Sh. Harish Shankar Roy, Executive Engineer.

PW No.	Name of witness	Description
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PW10. Inspector Satender Dhull He is the witness, who had conducted investigation in FIR bearing no.25/2014 dated 24.03.2014 and prepared rukka for registration of the present case alongwith other rukkas of sting operations giving background of the case and got the FIR registered. He also got the judicial edit of the DVD Exhibit-1 containing sting operation, with the permission of the Court and identified each official of PWD appearing in sting contained in DVD and seizure of DVDs by IO of the present case.

PW11. Sh. Dhanvinder Singh, Panch Witness in whose presence the Assistant Manager at complainant Sh. Sunil Kumar DSCSE, Aapoorti Chaudhary had signed the transcript of Bhawan, Aaram Bagh, sting video recording. Delhi.

PW12. Sh. Ajay Kumar Mittal Panch Witness. He is witness of seizure of two sealed parcels, one opened DVD, employee data summary of accused Rajesh Kumar Sharma by IO.

PW13. Sh. Om Prakash, Senior Panch witness in whose presence Assistant, Department of specimen voice sample of accused was Welfare, District Office, taken/ recorded in the audio cassette, at Rohini, Delhi FSL Rohini and seizure thereof. PW14. Sh. Kuldeep, Senior Panch witness in whose presence Assistant, Drugs Control specimen voice sample of accused was Department, KKD taken/ recorded in the audio cassette, at Courts, Delhi. FSL Rohini and their seizure by IO. PW15. Sh. Rahul Khanna, He was Chief Manager in India TV and GM/HR & Legal, India he provided raw footage and some other TV details in respect of sting operation. PW16. ASI Jitender Kumar He collected sealed pullandas from FSL and deposited in malkhana.

PW17. Sh. Girij Pal He is witness of seizure of two audio cassettes containing sample voice recording of the accused.

PW18. Sh. Chander Kant He is Panch Witness in whose presence Sharma voice sample of accused Rajesh Kumar was taken/recorded in audio cassettes by FSL Rohini, Delhi and seizure thereof.

PW No.	Name of witness	Description
PW19. SI	Suresh Kumar	He is witness who collected FSL Result and deposited with MHC(M), PS Civil Lines, Delhi.
PW20.	ASI Pankaj Singh	He is also witness of taking voice

sample of accused at FSL Rohini, Delhi in 2 audio cassettes [one original and one copy thereof] and seizure thereof. PW21. Sh. Dinesh Boken Panch witness in whose presence Inspector Satender Dhull prepared a copy of DVD with the help of office computer, marked same as DVD-RKS, and handed over to Inspector Manoj Kumar and seizure thereof.

PW22. Dr. C. P. Singh, Assistant He conducted authorized judicial edit of Director (Physics), FSL the video footage contained in DVD. Rohini, Delhi PW23. ASI Baljeet Singh MHC(M) with whom case properties/ exhibits were deposited and he also got deposited the same with FSL Rohini, Delhi, on the instructions of IO.

PW24. Sh. Geetesh Patel, He examined the voice samples of Assistant Chemical accused and complainant and prepared Examiner (Physics), FSL his detailed report. Rohini, Delhi PW25. HC Jasbir He is also witness of taking voice sample of complainant Sh. Sunil Chaudhary in audio cassettes [one of the cassettes was original voice sample and other was the copy thereof] at FSL and seizure thereof.

PW26. HC Jitender MHC(M) concerned with whom case properties were deposited and he got deposited the same with the FSL Rohini, on the direction of the IO PW27. Sh. Naveen Mann, LDC, Panch witness in whose presence o/o Executive Engineer, consent of accused was taken for Jal Board, Pitampura, recording of his voice sample. Delhi PW28. ASI Pawan He is witness who recorded DD entries regarding arrival of panch witnesses in the ACB Office and also received duty rosters of panch witnesses from different department.

PW	Name of witness	Description
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No.

- PW29. Sh. Ravinder, AE He is witness regarding joining and (Electrical) North relieving order of accused. Electrical Division, PWD, Rohini, Delhi
- PW30. Sh. Manish, Senior He proved registration records of M/s

Assistant, Trade & Taxes Hari Om Electronics downloaded from Department, ITO, Delhi DVAT portal PW31. Sh. Vijay Kumar Dev, He accorded Sanction under S. 19 of PC the then Chief Secretary Act against accused for his prosecution of Govt. Of NCT of under S. 7/13 PC Act.

Delhi.

PW32. Jarnail Singh, the then Part Investigating Officer [IO] Inspector PW33. Inspector Dinesh Kumar Part IO. He submitted the charge-sheet in the Court.

PW34. Inspector Manoj Kumar Part IO PW35. Inspector Rakesh Kumar Part IO (VIDYA PRAKASH) SPECIAL JUDGE (PC ACT) (ACB)-01 RADC/NEW DELHI APPENDIX-II SPECIMEN CHART FOR EXHIBITED DOCUMENTS [In compliance of directions issued by Hon'ble Apex Court in 'Manojbhai Jethabhai Parmar (Rohit) v.

State of Gujarat' bearing Criminal Appeal No.(s) 2973 of 2023, decided on 15.12.2025.] Exhibit No. Description of the Exhibit Proved by / attested by Ex.PW1/A Carbon copy of FIR, running (Colly.) into 3 pages Ex.PW1/B Endorsement of Duty Officer (PW1) on the rukka Ex.PW1/C DD No.37 regarding handing PW1 SI (Retd.) Krishan over rukka to him for Kumar, the then Duty registration of an FIR Officer.

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|----------|--|
| Ex.PW1/D | DD No.38 regarding investigation entrusted to Inspector Jarnail Singh, after registration of the FIR of the present case |
| Ex.PW2/A | Transcription, running into 6 PW2 Sh. Sunil Kumar Chaudhary, complainant; PW11 Sh. Dhanvinder Singh; and PW34 Inspector Manoj Kumar. |
| Ex.PW2/B | Seizure Memo of 2 cassettes PW2 Sh. Sunil Kumar containing voice sample of Chaudhary, complainant; PW2 PW5 Sh. Ankit Yadav; PW7 Sh. Manoj Kumar; PW25 HC Jasbir; and PW34 Inspector Manoj Kumar. |
| Ex.PW2/C | Consent Memo for getting PW2 Sh. Sunil Kumar recorded voice sample of PW2 Chaudhary, complainant; PW5 Sh. Ankit Yadav; PW7 Sh. Manoj Kumar; and PW34 Inspector Manoj Kumar. |

Ex.PW2/D	Place of occurrence identification memo	PW2 Sh. Sunil Kumar Chaudhary, complainant; and PW34 Inspector Manoj Kumar.
Ex.PW2/E	Original M.B. containing	PW2 Sh. Sunil Kumar

relevant pages i.e. from page Chaudhary, complainant.

nos.58 to 66

Exhibit No.	Description of the Exhibit	Proved by / attested by
Ex.PW2/F	Attested copy of the bill bearing	PW2 Sh. Sunil Kumar Chaudhary, complainant;

No.181/AE(E)M-3523/2013-1 and PW34 Inspector Manoj 4 Kumar Mark Statement under S. 161 Cr.PC PW2 Sh. Sunil Kumar PW2/DA of PW2 Chaudhary, complainant.

Ex.PW3/A	Observation-cum-Identificatio n Memo regarding identification of accused	PW3 Sh. Hari Shankar Roy, EE; and PW9 Sh. Rahul.
Mark-X	Statement dated 10.10.2019 u/s 161 Cr.PC of PW3 Sh. EE. Hari Shankar Roy	PW3 Sh. Hari Shankar Roy,
Ex.PW4/A	Letter dated 24.03.2014 written by PW4 Sh. Deepak Retd.	PW4 Sh. Deepak Gupta, Addl. Director

Gupta, Retd. Addl. Director General. General to Addl. CP, ACB Delhi to probe the role of 9 officials of PWD about whome telecast were made by India TV on 22.03.2014 and 23.03.2014 Ex.PW5/A Sample seal PW5 Sh. Ankit Yadav, Panch Witness; PW7 Sh.

Manoj Kumar; and PW34 Inspector Manoj Kumar.

Ex.PW5/B Duty Roster showing name of PW5 Sh. Ankit Yadav, (Colly.) PW5 Sh. Ankit Yadav at Sr. Panch Witness; and PW25 No.26 for his duty on HC Jasbir.

26.09.2017 as Panch Witness at ACB Mark-PW6/D Statement under S. 161 Cr.PC PW6 Farooq Newazi A of PW6 Farooq Newazi Ex.PW8/A Copy of RC PW8 SI (Retd.) Ombir Ex.PW8/B Acknowledgment Singh, the then ASI; and PW26 HC Jitender.

Ex.PW10/A	Seizure Memo of DVD Exhibit-1A
Ex.PW10/B	Application seeking

permission for authorized PW10 Inspector Satender judicial edit of the DVD Dhull.

Ex.PW10/C Copy of
observation-cum-judicial edit
memo.

Exhibit No.	Description of the Exhibit	Proved by / attested by
Ex.PW10/D	Identification memo	PW10 Inspector Satender Dhull; and PW21 Sh. Dinesh Boken.

Ex.PW10/E Copy of rukka of present case PW10 Inspector Satender Dhull.

Ex.PW10/F Handing over-cum-seizure PW10 Inspector Satender memo of DVDs, Bio-Data of Dhull; and PW32 ACP accused and copy of all other Jarnail Singh. relevant documents Ex.PW10/G Seizure Memo of copy of Full PW10 Inspector Satender DVD Dhull; and PW34 Inspector Manoj Kumar.

Ex.PW10/DA Letter dated 31.03.2014 in response to letter dated 27.03.2014 PW10 Inspector Satender Dhull.

Ex.PW10/DB	Copy of letter dated 27.03.2014
Mark	Copy of Employee Data PW12 Sh. Ajay Kumar
PW12/PX	Summary of accused Rajesh Mittal, Panch Witness. Kumar Sharma.

Ex.PW13/A Consent Memo regarding PW13 Sh. Om Prakash;

taking consent of accused for PW14 Sh. Kuldeep; and taking his voice sample PW34 Inspector Manoj Kumar.

Ex.PW13/B Seizure Memo of audio PW13 Sh. Om Prakash;

cassette containing voice PW14 Sh. Kuldeep; and sample of accused PW17 Sh. Girij Pal.

Ex.PW15/A Copy of Notice under S. 91 PW15 Sh. Rahul Khanna, Cr.PC GM/HR & Legal, India TV.

Ex.PW15/B Letter dated 31.3.2014 in response to said notice Mark PW15/X Office copy of notice u/s 91 Cr.PC for providing Certificate under S. 65B of Indian Evidence Act Reply dated 18.01.2019 to said Ex.PW15/C notice Ex.PW15/D Certificate under S. 65B of Indian Evidence Act dated 18.01.2019 Ex.PW15/E Notice for providing whole episode carried out by Exhibit No. Description of the Exhibit Proved by / attested by reporter/ correspondent/ cameraman and the certificate for the employment of the correspondent / reporter Ex.PW15/F Reply dated 23.05.2015 to said notice Ex.PW15/G Certificate in respect of employment of correspondent namely Sh. Farooq Newazi Ex.PW15/H Notice for providing original recording instrument alongwith connecting cables through

which the sting operation was recorded in PWD office during the month of February, 2014 Ex.PW15/I Reply dated 15.04.2017 to said notice Ex.PW16/A Request letter for collection of PW16 ASI Jitender Kumar FSL Result Ex.PW17/A Sample seal PW17 Sh. Girij Pal, the then Constable; and PW34 Inspector Manoj Kumar.

Ex.PW18/A Consent Memo PW18 Sh. Chander Kant Ex.PW18/B Seizure Memo of both audio Sharma; PW20 ASI Pankaj cassettes containing voice Singh; and PW34 Inspector sample of accused Manoj Kumar.

Ex.PW22/A FSL Result PW22 Dr. C. P. Singh, Assistant Director (Physics), FSL Rohini, Delhi.

Ex.PW23/A	Copy of Entry No.17/1087 dated 21.06.2019 in Register No.19 regarding sending PW23 ASI Baljeet Singh, exhibits to FSL the then MHC(M).
Ex.PW23/B	Copy of RC
Ex.PW23/C	Acknowledgment of FSL
Ex.PW24/A	FSL Result qua examination of voice samples of complainant Sh. Sunil PW24 Sh. Geetesh Patel, Chaudhary Assistant Chemical Examiner (Physics), FSL
Ex.PW24/B	FSL Result qua examination Rohini, Delhi of voice samples of accused

Exhibit No.	Description of the Exhibit	Proved by / attested by
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Ex.PW26/A Copy of relevant entry in PW26 HC Jitender, the then Register No.19 MHC(M) at PS Civil Lines. Ex.PW27/A Consent of accused for taking PW27 Sh. Naveen Mann, his voice sample Panch witness Ex.PW28/A DD No.8 dated 16.1.2015 PW28 ASI Pawan regarding arrival of Panch Witness namely Sh. A. K. Mittal in the office of ACB Ex.PW28/B DD No.19 dated 16.1.2015 regarding arrival of Panch Witness namely Sh. Rampal in the office of ACB Ex.PW28/C DD No.7 dated 09.08.2016 regarding arrival of Panch Witnesses namely Sh. Dinesh Boken, Sh.K. C. Meena and Sh. Jagbir in the office of ACB Ex.PW28/D DD No.8 dated 11.09.2017 regarding arrival of Panch Witnesses namely Sh.

Dhanvinder Singh, Sh.

Saraswati, Sh. Pramod and Sh.

Manoj in the office of ACB Ex.PW28/E DD No.3 dated 26.09.2017 regarding arrival of Panch Witnesses namely Sh. Dinesh Kumar, Sh. Narender Kumar, Sh. Ankit Yadav, in the office of ACB Ex.PW28/F DD No.8 dated 26.09.2017 regarding arrival of Panch Witness namely Sh. Sahib Singh

in the office of ACB Ex.PW28/G DD No.8 dated 22.12.2020 regarding arrival of Panch Witnesses namely Sh. Swapnil Patil and Sh. Vijay Kumar Meena in the office of ACB Ex.PW28/H DD No.12 dated 22.12.2020 regarding arrival of Panch Witness namely Sh. Sandeep Kumar Tyagi in the office of ACB Ex.PW28/I DD No.3 dated 16.06.2019 regarding arrival of Panch Exhibit No. Description of the Exhibit Proved by / attested by Witnesses namely Sh. Brahm Dutt Sharma, Sh. Mukesh Kumar, Sh. A. K. Jha and Sh.

Shankar Bahadur in the office of ACB Ex.PW28/J DD No.9 dated 24.07.2018 regarding arrival of Panch Witnesses namely Sh. Manish Pandey, Sh. Deepchand, Sh.

Ashok Kumar and Sh.

Narender Singh in the office of ACB Ex.PW28/K DD No.5 dated 12.04.2019 regarding arrival of Panch Witnesses namely Sh. Rakesh Kumar Sharma, Sh. Rahul and Sh. Vinayak Patel in the office of ACB Mark Copy of Duty Rosters of PW28/X1 Panch Witness(s) received from Irrigation & Flood Control Department, Govt. of NCT of Delhi of January, Mark Copy of Duty Rosters of PW28/X2 Panch Witness(s) received from Delhi Jal Board, Delhi of September, 2017 Mark Copy of Duty Rosters of PW28/X3 Panch Witness(s) received from Transport Department, Delhi of July, 2018 Mark Copy of Duty Rosters of PW28/X4 Panch Witness(s) received from Trade & Taxes Department of June, 2019 Mark Copy of Duty Rosters of PW28/X5 Panch Witness(s) received from Registrar Co-operative Societies, Govt. of NCT of Delhi of April, 2019 Mark Copy of Duty Rosters of PW28/X6 Panch Witness(s) received from Drugs & Control Department, Govt. of NCT of Exhibit No. Description of the Exhibit Proved by / attested by Delhi, Karkardooma of August, 2016 Mark Copy of Duty Rosters of PW28/X7 Panch Witness(s) received from Departmental of Social Welfare, Govt. of NCT of Delhi of December, 2017 Mark Copy of Duty Rosters of PW28/X8 Panch Witness(s) received from Drugs & Control Department, Govt. of NCT of Delhi of December, 2017 Ex.PW29/A Letter/reply dated 19.03.2019 Ex.PW29/B Certified Copies of Joining Letter dated 05.11.2012 PW29 Sh. Ravinder, AE (Electrical) North Electrical Ex.PW29/C Certified Copies of Joining Division, PWD, Rohini, Letter dated 20.11.2012 Delhi; and PW34 Inspector Ex.PW29/D Relieving Order dated Manoj Kumar 16.04.2015 Ex.PW29/E Reply dated 04.08.2018 Ex.PW30/A Attested copy of registration records of M/s Hari Om Electronics downloaded from PW30 Sh. Manish, Sr. DVAT portal Assistant, Trade & Taxes Department, ITO, Delhi.

Ex.PW30/B Certificate under S. 65-B of Indian Evidence Act.

Ex.PW31/A Sanction Order under S. 19 of PW31 Sh. Vijay Kumar PC Act Dey, the then Chief Secretary of Govt. of NCT of Delhi.

Mark PW34/X Photocopy of sample seal PW34 Inspector Manoj memo Kumar.

Ex.PW34/A Notice under S. 91 Cr.PC regarding providing records concerning posting and attendance of accused Ex.PW34/B notice under S. 91 Cr.PC issued to the Executive Engineer regarding the contract given to M/s Hari Om Electronics during the year 2012-2013 and 2013-2014 Ex.PW34/C notice regarding providing details of running and final Exhibit No. Description of the

Exhibit Proved by / attested by bills of M/s Hari Om Electronics dealt by accused Ex.PW34/D notice under S. 91 Cr.PC for providing original measurement books, Mark Reply dated 04.04.2019, PW34/X1 Mark Reply dated 14.05.2019 PW34/X2 Mark Reply dated 29.05.2019 PW34/X3 Ex.PW34/E Notice under S. 91Cr.PC for providing Certificate under S. 65B of Indian Evidence Act from India TV regarding raw footage DVD, Ex.PW34/F Notice under S. 91 Cr.PC issued to concerned Authority of Department of Trade & Taxes, ITO Delhi for providing registration record of proprietorship firm of the complainant Ex.PW34/G Reply dated 09.10.2019 Ex.PW34/H registration record of M/s Hari Om Electronics (VIDYA PRAKASH) SPECIAL JUDGE (PC ACT) (ACB)-01 RADCLIFFE/NEW DELHI APPENDIX-III SPECIMEN CHART FOR MATERIAL OBJECTS/ Muddamals [In compliance of directions issued by Hon'ble Apex Court in 'Manojbhai Jethabhai Parmar (Rohit) v.

State of Gujarat' bearing Criminal Appeal No.(s) 2973 of 2023, decided on 15.12.2025.] Exhibit Description of the Exhibit Proved by / attested by No. Ex.PW2/ DVD make Moserbaer, in PW2 Sh. Sunil Kumar Article-1 which FSL Number and Chaudhary; and PW6 Sh. Farooq 'Copy of DVD-8 of set-1' Newazi.

are mentioned, containing sting operation.

Ex.PW2/ DVD-R make Moserbaer PW2 Sh. Sunil Kumar Article-2 containing sting operation. Chaudhary; PW10 Inspector Satender Dhull; PW22 Dr. C. P. Singh, Assistant Director (Physics), FSL Rohini, Delhi; and PW24 Sh. Geetesh Patel, Assistant Chemical Examiner (Physics), FSL Rohini, Delhi.

Ex.PW2/ Cut cloth pullanda bearing PW2 Sh. Sunil Kumar Article-3 signature of PW2, PW5 and Chaudhary; PW5 Sh. Ankit PW7. Yadav; PW7 Sh. Manoj Kumar;

and PW25 HC Jasbir.

Ex.PW2/ Audio cassette containing PW2 Sh. Sunil Kumar Article-4 voice sample of PW2. Chaudhary; PW5 Sh. Ankit Yadav; PW7 Sh. Manoj Kumar;

PW24 Sh. Geetesh Patel, Asst.

Chemical Examiner (Physics),
FSL Rohini, Delhi; PW25 HC
Jasbir; and PW34 Inspector
Manoj Kumar.

Ex.PW2/D DVD containing raw PW2 Sh. Sunil Kumar
A footage of complete PWD Chaudhary; and PW34 Inspector

sting running into 04 hours Manoj Kumar, IO. 22 minutes 02 seconds [04:22:02].

Ex.PW3/ DVD make Moserbaer PW3 Sh. Hari Shankar Roy; PW9 Article-1 containing video in which Sh. Rahul, Jr. Assistant, LNJP accused has been identified Hospital, Delhi; and PW34 by

PW3. Inspector Manoj Kumar.

Ex.PW3/ Measurement Books. PW3 Sh. Hari Shankar Roy. Article-2 (Colly.) Exhibit Description of the Exhibit Proved by / attested by No. Ex.PW5/ Clothe Pullanda. PW5 Sh. Ankit Yadav; PW7 Sh. Article-1 Manoj Kumar; PW25 HC Jasbir;

and PW34 Inspector Manoj Kumar.

Ex.PW5/ Audio Cassette make Sony PW5 Sh. Ankit Yadav; PW7 Sh. Article-2 on which VOICE SAMPLE Manoj Kumar; PW25 HC Jasbir;

(copy) is mentioned. and PW34 Inspector Manoj Kumar.

Ex.P3 DVD, which was handed PW10 Inspector Satender Dhull;

over to PW10 by Sh. Rahul PW15 Sh. Rahul Khanna, Khanna, India TV, GM/HR & Legal, India TV; and containing raw footage of PW22 Dr. C. P. Singh, Assistant sting operation carried out Director (Physics), FSL Rohini, by correspondent Sh. Farooq Delhi.

Newazi.

Ex.PW13/ Audio Cassette containing PW13 Sh. Om Prakash; PW14 Article-1 specimen voice sample of Sh. Kuldeep [Panch Witnesses];

accused. PW17 Sh. Girij Pal; and PW24 Sh. Geetesh Patel, Asst. Chemical Examiner (Physics), FSL Rohini, Delhi; and PW34 Inspector Manoj Kumar.

Ex.PW18/ Clothe Pullanda bearing PW18 Sh. Chander Kant Sharma; Article-1 Mark 'RKS-1'. PW20 ASI Pankaj Singh; and PW34 Inspector Manoj Kumar.

Ex.PW18/ Audio Cassette, in which PW18 Sh. Chander Kant Sharma; Article-2 voice sample of accused was PW20 ASI Pankaj Singh; and copied from the main audio PW34 Inspector Manoj Kumar. cassette containing voice sample.

Ex.PW18/ Clothe Pullanda bearing PW18 Sh. Chander Kant Sharma; Article-3 Mark 'RKS'. PW20 ASI Pankaj Singh; and PW24 Sh. Geetesh Patel, Asst.

Chemical Examiner (Physics), FSL Rohini, Delhi.

Ex.PW18/ Audio Cassette, in which PW18 Sh. Chander Kant Sharma; Article-4 original voice sample of PW20 ASI Pankaj Singh; PW24 accused was recorded. Sh. Geetesh Patel, Asst. Chemical Examiner (Physics), FSL Rohini, Delhi; and PW34 Inspector Manoj Kumar.

Exhibit Description of the Exhibit Proved by / attested by No. Ex.PW24/ Envelope bearing FSL No. PW24 Sh. Geetesh Patel, Asst. Article-1 SFSLDLH/6115/PHY/208/ Chemical Examiner (Physics),

19. FSL Rohini, Delhi.

Ex.PW34/ Clothe Parcel No.2.

Article-1 Ex.PW34/ Clothe Pullanda duly sealed Article-2 with the seal of MK. PW34 Inspector Manoj Kumar.

Ex.PW34/ Audio Cassette make
Article-3 T-Series bearing FIR
 number of this case.

(VIDYA PRAKASH)
SPECIAL JUDGE (PC ACT) (ACB) -01
RADC/NEW DELHI